海盗行为作为政治棱镜：海上劫掠者与国际性大西洋的兴起

Piracy as Political Prism: Sea Raiders and the Rise of the International Atlantic

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关键词：海盗行为；阿蒂加斯；大西洋史；拉丁美洲；私掠；主权；国际法；宪法；承认；恐怖主义

摘要 / Abstract

[p. 1] 本文把海上暴力置于国际秩序形成史的中心，从一艘船的甲板上观察十九世纪大西洋的转变：这是一艘在巴尔的摩建造、名为*“不可抗拒号”*的私掠船。该船船长持东方共和国颁发的私掠委任状，捕获西班牙和葡萄牙船只。东方共和国及其他拉丁美洲新政府对私掠船的支持，体现了一种承认多种尺度上主权的开放式大西洋宪政主义。这一宪政背景，构成涉及“不可抗拒号”及其船员、最终提交美国最高法院的三起案件的背景。这些案件表明，私掠政治如何引出关于国家、战争和海盗行为定义的广泛辩论，同时保留了新大西洋体系中主权的不确定性。这一体系在形成的同时趋于封闭，由受到压力、必须与强大帝国协调立场的新国家构成。围绕私掠的争议，一方面强化了把海盗行为视为万国法之下犯罪的修辞，另一方面又保留了保护低烈度海上暴力的制度。本文把海盗政治置于国内秩序与国际秩序的交汇处，突出“海盗是所有人的敌人”这一话语的政治用途和法律限度，并把这段历史同理解国际秩序中的恐怖主义与国家联系起来。

[p. 1] This article places maritime violence at the center of the history of international ordering. It views the transformation of the nineteenth-century Atlantic from the deck of one ship, a Baltimore-built privateer called the *Irresistible*. The ship’s captain seized Spanish and Portuguese shipping under a privateering commission from the Oriental Republic. Sponsorship of privateers by the Oriental Republic and other new Latin American governments reflected an open-ended Atlantic constitutionalism that recognized sovereignty at multiple scales. That constitutional context formed the background to three cases involving the *Irresistible* and its crew that reached the U.S. Supreme Court. The cases show how privateering politics opened to wide-ranging debates about the definition of states, war, and piracy, while preserving the indeterminacies of sovereignty in the new Atlantic system. That system, closing as it formed, was composed of new states pressured to align with powerful empires. Privateering disputes featured sharpening rhetoric about piracy as a crime under the law of nations while at the same time preserving a regime that protected low-level maritime violence. Situating the politics of piracy at the nexus of domestic and international orders, the article highlights the political uses and legal limits of the discourse of pirates as enemies of all and connects this history to an understanding of terrorism and states in the international order.

[p. 1] 在过去二十年的大部分时间里，海盗史学家一直陷于制造神话与打破神话的循环。[1]一批学者，以及急于从旺盛的海盗传说市场中获利的通俗作家，把海上劫掠者描绘成富有传奇色彩的无赖。他们把大多数海盗描述为本质上反权威的行动者，偏好尝试另类的政治团结形式。这类历史强调近代早期海盗分享战利品的盟约，以及推翻专横船长统治的仪式。有些叙述把建立激进创新共和国的功劳归于海盗，或者把他们描绘为无牵无挂的海上劫掠者，认为他们促成了启蒙思想、协助了民主革命，并推动了反帝国运动。在这套叙述中，打击海盗的行动，便成为其他形式国家压迫的同义词。[2]

[p. 1] For much of the last two decades, historians of piracy have been caught in a cycle of myth-making and myth-busting.[1] One group of scholars, joined by popular writers eager to profit from the robust market for pirate lore, depicts maritime raiders as colorful rogues. They portray most pirates as inherently anti-authoritarian actors who possessed a penchant for experimenting with alternative forms of political solidarity. Histories in this vein highlight early modern pirates’ pacts to share booty and their rituals for overturning rule by despotic captains. Some accounts credit pirates with founding radically innovative republics or depict them as footloose maritime raiders who contributed to Enlightenment thought, aided democratic revolutions, and fueled anti-imperial movements. Cam-

1. 感谢 Jatin Dua 和 Andrew Shryock 邀请我作首届 Sylva

Thrupp 讲座，也感谢论坛评议人 Jatin Dua、Nathan Perl-Rosenthal 和 Judith Scheele。还要感谢 Kevin Arlyck、Annabel Brett、Beatrice de Graaf、Lawrence Douglas、Ana Frega、David Golove、Daniel Hulsebosch、Jay Mehta、Sarah Seo 及 Frank Stewart 提出有益意见。标题改用了下列著作中的“国际领域的兴起”这一说法：Devetak, Richard and Dunn, Tim, eds., The Rise of the International〔题名译释：国际领域的兴起〕(Oxford: Oxford University Press, 2024).

2. 著名例子包括 Linebaugh, Peter and Rediker, Marcus, The Many-Headed Hydra: Sailors, Slaves, Commoners, and the Hidden History of the Revolutionary Atlantic〔题名译释：多头九头蛇：海员、奴隶、平民与革命大西洋的隐秘历史〕(Boston: Beacon Press, 2000); Rediker, Marcus, Villains of All Nations〔题名译释：各国的恶棍〕(Boston: Beacon Press, 2005); Graeber, David, Pirate Enlightenment, or the Real Libertalia〔题名译释：海盗启蒙，或真实的利伯塔利亚〕(New York: Farrar, Straus, and Giroux, 2023).

[p. 2] 另一批历史学家批评了把海盗描绘为政治创新者的做法，揭示他们与既有的、尽管不断变化的庇护和权力网络之间的联系。这些学者表明，大多数近代早期劫掠者声称自己并非海盗，而是私掠者——获合法主权者许可、可以捕获敌方船只的海员。相关研究追踪了劫掠者如何积极采取我所称的“法律姿态”，为自己的行动涂上合法色彩，提高把战利品确认为财产的机会。大多数劫掠者并不煽动革命，而是结交强大的资助者，渴望在定居社群中成为有产户主。打击海盗的行动具有多种政治目标，也创造性地运用了“海盗是所有人的敌人”的修辞；但各政治体主要还是通过国内法将海盗行为刑事化，以遏制海盗活动。[3]

3. 关于法律姿态，参见 Benton, Lauren, A Search for Sovereignty: Law and Geography in European Empires, 1400–1900〔题名译释：探寻主权：欧洲帝国中的法律与地理，1400—1900〕(Cambridge: Cambridge University Press, 201), 第 3 章. 关于海上劫掠者复杂的动机，参见 Hanna, Mark, Pirate Nests and the Rise of the British Empire, 1570–1740〔题名译释：海盗巢穴与大英帝国的兴起，1570—1740〕(Chapel Hill: University of North Carolina Press, 2017); and Prange, Sebastian, “A Trade of No Dishonor: Piracy, Commerce, and Community in the Western Indian Ocean, Twelfth to Sixteenth Century〔题名译释：并非不名誉的行当：十二至十六世纪西印度洋的海盗、商业与社群〕,” American Historical Review 116, 5 (Dec. 2011): 1269–93 DOI: 10.1086/ahr.116.5.1269.

[p. 2] 作为第二种视角的参与建构者，我有理由对第一种视角的顽强生命力感到绝望。似乎无论汇集多少证据，都无法撼动这样的看法：海盗是反权威的无赖，通常被视为所有人的敌人。“普遍敌对”语言在法律学说上的效力曾随时间变化，这一点似乎也无关紧要。[4]研究发现，遏制海上劫掠的行动更多依靠国内法下的措施，而非普遍管辖权的行使；这一发现，也未能减缓浪漫化海盗史的生产。[5]悖谬的是，不断削弱“被放逐的海盗”这一形象，或许反而使注意力集中在海上劫掠者这个人物身上，而未能鼓励人们分析组织海上关系的制度背景。

4. Vergerio, Claire, War, States, and International Order: Alberico Gentili and the Foundational Myth of the Laws of War〔题名译释：战争、国家与国际秩序：阿尔贝里科 • 真蒂利与战争法的奠基神话〕(New York: Cambridge University

paigns against piracy become, in this telling, synonymous with other forms of state oppression.[2]

1. My thanks to Jatin Dua and Andrew Shryock for the invitation to present the inaugural Sylva Thrupp lecture and to the forum discussants, Jatin Dua, Nathan Perl-Rosenthal, and Judith Scheele. I also wish to thank Arlyck, Kevin, Brett, Annabel, de Graaf, Beatrice, Douglas, Lawrence, Frega, Ana, Golove, David, Hulsebosch, Daniel, Mehta, Jay, Sarah Seo, and Frank Stewart for helpful comments. The title adapts the phrase “rise of the international” from Devetak, Richard and Dunn, Tim, eds., The Rise of the International (Oxford: Oxford University Press, 2024).

2. Prominent examples are Linebaugh, Peter and Rediker, Marcus, The Many-Headed Hydra: Sailors, Slaves, Commoners, and the Hidden History of the Revolutionary Atlantic (Boston: Beacon Press, 2000); Rediker, Marcus, Villains of All Nations (Boston: Beacon Press, 2005); Graeber, David, Pirate Enlightenment, or the Real Libertalia (New York: Farrar, Straus, and Giroux, 2023).

[p. 2] A second group of historians has critiqued representations of pirates as political innovators, revealing their connections to established, if fluid, networks of patronage and power. These scholars show that most early modern raiders claimed to be not pirates but privateers—mariners licensed by legitimate sovereigns to seize enemy ships. Studies track how raiders engaged actively in what I have called “legal posturing” to color their actions as lawful and improve their chances of securing booty as property. Rather than fomenting revolution, most raiders cultivated powerful sponsors and aspired to positions as propertied heads of household in settled communities. Campaigns against piracy had various political objectives and creatively deployed rhetoric about pirates as enemies of all, but polities mainly sought to contain piracy through its criminalization under domestic law.[3]

3. On legal posturing, see Benton, Lauren, A Search for Sovereignty: Law and Geography in European Empires, 1400–1900 (Cambridge: Cambridge University Press, 201), chapter 3. On the complex motives of sea raiders, see Hanna, Mark, Pirate Nests and the Rise of the British Empire, 1570 – 1740 (Chapel Hill: University of North Carolina Press, 2017); and Prange, Sebastian, “A Trade of No Dishonor: Piracy, Commerce, and Community in the Western Indian Ocean, Twelfth to Sixteenth Century,” American Historical Review 116, 5 (Dec. 2011): 1269–93 DOI: 10.1086/ahr.116.5.1269.

[p. 2] Having participated in developing the second perspective, I have had reason to despair over the resilience of the first. No assemblage of evidence seems capable of dislodging the view that pirates were anti-authoritarian rogues routinely regarded as enemies of all. Nor does it appear to matter that the doctrinal force of the language of universal enmity changed over time.[4] The finding that campaigns to contain raiding relied more on actions under domestic law than on the exercise of universal jurisdiction has also not slowed the production of romanticized pirate histories.[5] Paradoxically, chiseling away at the image of the outcast pirate has perhaps helped focus attention on the figure of the sea raider rather than encouraging analysis of the institutional context that structured maritime relations.

Press, 2022), 108–118 ; 另参 Heller-Roazen, Daniel, The Enemy of All: Piracy and the Law of Nations〔题名译释：所有人的敌人：海盗行为与万国法〕(Princeton: Princeton University Press, 2009).

5. Benton, Lauren, “Toward a New Legal History of Piracy: Maritime Legalities and the Myth of Universal Jurisdiction〔题名译释：迈向海盗法律新史：海上法律秩序与普遍管辖权的神话〕,” International Journal of Maritime History 23, 1 (2011): 1–15 ; Coakley, J., Kwan, C. N., and Wilson, D., “Introduction: Piracy and Occasional State Power〔题名译释：导论：海盗行为与间歇性的国家权力〕,” International Journal of Maritime History 32, 3 (2020): 656–65 DOI: 10.1177/0843871420944651.

[p. 2] 若干研究路径强调海上劫掠的政治意义，从而打破了上述辩论的格局。其中一条路径探究海上暴力与国家形成的关系。历史学家追踪了海盗行为在古代地中海、十六世纪南亚以及十九世纪早期美国等不同情境中，对政治权威产生的影响。[6]与之密切相关的另一条路径，考察海盗行为在区域与全球秩序兴起中的位置。[7]例如，莉萨 • 福特和我曾追踪帝国及帝国之间为遏制海盗而开展的海上行动，如何促成覆盖大洋、漏洞重重且管辖关系复杂的法律制度。[8]

6. de Souza, Philip, “Rome’s Contribution to the Development of Piracy〔题名译释：罗马对海盗活动发展的贡献〕,” Memoirs of the American Academy in Rome. Supplementary Volumes, vol. 6, 2008, 71–96 ; Subramanian, Lakshmi, The Sovereign and the Pirate: Ordering Maritime Subjects in India’s Western Littoral〔题名译释：主权者与海盗：印度西部海岸海上臣民的秩序化〕(New Delhi, Oxford University Press, 2016) DOI: 10.1093/acprof:oso/9780199467044.001.0001; Wang, Wensheng, White Lotus Rebels and South China Pirates: Crisis and Reform in the Qing Empire〔题名译释：白莲教起义者与华南海盗：清帝国的危机与改革〕(Cambridge: Harvard University Press, 2014); and Arlyck, Kevin, The Nation at Sea: The Federal Courts and American Sovereignty, 1789–1825〔题名译释：海上的国家：联邦法院与美国主权，1789—1825〕(Cambridge: Cambridge University Press, 2025) DOI: 10.1017/9781009393041.

7. Janice E. Thomson 率先在下列著作中采用这一研究路径：*Mercenaries, Pirates, and Sovereigns〔题名译释：雇佣兵、海盗与主权者〕*(Princeton: Princeton University Press, 1996). 关于这一视角的概述，参见 Renaud Morieux and Jeppe Mulich, eds., “Ordering the Oceans, Ordering the World: Law, Violence, and European Empires〔题名译释：组织海洋秩序，组织世界秩序：法律、暴力与欧洲帝国〕,” *Past & Present* 265, Supplement 17 (November 2024): 1–20.

8. Benton, Lauren and Ford, Lisa, Rage for Order: The British Empire and the Origins of International Law〔题名译释：对秩序的狂热：大英帝国与国际法的起源〕(Harvard University Press, 2016) DOI: 10.4159/9780674972780, 第 5 章; Lisa Ford and Lauren Benton, “Empire, Nation, and the International in the Mid-Century Atlantic〔题名译释：世纪中叶大西洋的帝国、民族国家与国际领域〕,” in Devetak and Dunne, eds, *The Rise of the International〔题名译释：国际领域的兴起〕*, 189–209.

[p. 3] 本文以研究海盗行为的法律—政治路径为基础，考察海上劫掠与国际性大西洋的兴起。我暂且搁置围绕所谓海盗黄金时代展开的旧有辩论，分析十九世纪早期大西洋劫掠激增与国家数量增加之间的联系。这一探究需要与某些关于革命时代的叙述保持批判距离：这些叙述将该时期描绘为革命意识形态的“浪潮”或“主权的传染”改变了整个地区的时代。[9]正如克

4. Vergerio, Claire, War, States, and International Order: Alberico Gentili and the Foundational Myth of the Laws of War (New York: Cambridge University Press, 2022), 108–118 ; cf. Heller-Roazen, Daniel, The Enemy of All: Piracy and the Law of Nations (Princeton: Princeton University Press, 2009).

5. Benton, Lauren, “Toward a New Legal History of Piracy: Maritime Legalities and the Myth of Universal Jurisdiction,” International Journal of Maritime History 23, 1 (2011): 1–15 ; Coakley, J., Kwan, C. N., and Wilson, D., “Introduction: Piracy and Occasional State Power,” International Journal of Maritime History 32, 3 (2020): 656–65 DOI: 10.1177/0843871420944651.

[p. 2] Several lines of inquiry disrupt these debates by underscoring the political significance of maritime raiding. One strand explores the relation of maritime violence to state formation. Historians have tracked the effects of piracy on political authority in such diverse contexts as the ancient Mediterranean, sixteenth-century South Asia, and the early nineteenth-century United States.[6] A closely related strand of research investigates the place of piracy in the rise of regional and global orders.[7] Lisa Ford and I have traced, for example, how imperial and interimperial maritime campaigns to contain piracy helped produce gap-ridden, jurisdictionally complex legal regimes of oceanic dimensions.[8]

6. de Souza, Philip, “Rome’s Contribution to the Development of Piracy,” Memoirs of the American Academy in Rome. Supplementary Volumes, vol. 6, 2008, 71–96 ; Subramanian, Lakshmi, The Sovereign and the Pirate: Ordering Maritime Subjects in India’s Western Littoral (New Delhi, Oxford University Press, 2016) DOI: 10.1093/acprof:oso/9780199467044.001.0001; Wang, Wensheng, White Lotus Rebels and South China Pirates: Crisis and Reform in the Qing Empire (Cambridge: Harvard University Press, 2014); and Arlyck, Kevin, The Nation at Sea: The Federal Courts and American Sovereignty, 1789–1825 (Cambridge: Cambridge University Press, 2025) DOI: 10.1017/9781009393041.

7. This approach was pioneered by Janice E. Thomson in *Mercenaries, Pirates, and Sovereigns* (Princeton: Princeton University Press, 1996). For an overview of this perspective, see Renaud Morieux and Jeppe Mulich, eds., “Ordering the Oceans, Ordering the World: Law, Violence, and European Empires,” *Past & Present* 265, Supplement 17 (November 2024): 1–20.

8. Benton, Lauren and Ford, Lisa, Rage for Order: The British Empire and the Origins of International Law (Harvard University Press, 2016) DOI: 10.4159/9780674972780, chapter 5; Lisa Ford and Lauren Benton, “Empire, Nation, and the International in the Mid-Century Atlantic,” in Devetak and Dunne, eds, *The Rise of the International*, 189–209.

[p. 3] This article builds on legal-political approaches to piracy to examine maritime raiding and the rise of the international Atlantic. Setting aside older debates about pirates centered on piracy’s so-called golden age, I analyze the connections between a surge in Atlantic raiding and the proliferation of states in the early nineteenth century. The inquiry requires some critical distance from nar-

里斯托弗 • 克拉克就 1848 年全球政治动荡指出的，革命并不总是在回应全球潮流，而可能作为“同源的”事件，在“相近的文化与政治秩序之内”展开。[10]在十九世纪早期的大西洋地区，新的政治实体同步形成，回应着帝国紧张关系与战争，尤其是法国入侵伊比利亚半岛所造成的危机。开放式宪政主义为多种可能的政治组织形式提供了框架；新实体则与帝国政府周旋，后者一方面试图推动、另一方面又试图阻挠或限制新主权的形成。

9. “主权的传染”出自 Armitage, David, The Declaration of Independence: A Global History〔题名译释：独立宣言：一部全球史〕(Cambridge: Harvard University Press, 2007), 103–4 DOI: 10.4159/9780674020276-004. 过度依赖浪潮隐喻的一例是 Sivasundaram, Sujit, Waves Across the South: A New History of Revolution and Empire〔题名译释：席卷南方的浪潮：革命与帝国新史〕(Chicago: University of Chicago Press, 2021) DOI: 10.7208/chicago/9780226790558.001.0001.

10. Clark, Christopher, Revolutionary Spring: Europe Aflame and the Fight for a New World, 1848–1849〔题名译释：革命之春：烽火中的欧洲与争取新世界的斗争，1848—1849〕(New York: Crown, 2023), 279 .

[p. 3] 这一地区的政治转变，也不止是一组同源事件。确立自身属于国际社会之主张的紧迫感，笼罩着整个地区。外交官、商人、官员、海员、劳动者与俘虏，都高度关注国际事件及其压力，并依据这些变化为自己定位。要解释这一时期大洋尺度上的政治重组，就必须密切关注国内与国际政治场域的相互渗透。[11]也就是说，不能把国际秩序当作一个已经构成的领域，仿佛它悬浮于地方、国家和区域政治的视野之外。[12]

11. 关于政治思想中内部 / 外部秩序的关系，参见 Brett, Annabel, Changes of State: Nature and the Limits of the City in Early Modern Natural Law〔题名译释：国家的变迁：近代早期自然法中的自然与城邦界限〕(Princeton: Princeton University Press, 2011); 关于帝国的内部 / 外部维度，参见 Benton and Ford, *Rage for Order〔题名译释：对秩序的狂热〕*, 193–195.

12. Bartelson, Jens, Becoming International〔题名译释：成为国际的〕(New York: Cambridge University Press, 2023) DOI: 10.1017/9781009400718, 第 1 章.

[p. 4] 这一视角把注意力从海盗究竟是内部人还是外部人的问题上移开。在这一时期，正如其他时期一样，海上劫掠的关键特征，是其忽明忽暗的性质，即其法律保护根本上的不稳定。[13]正如宪政主义本身，私掠与海盗行为的法律实践，同时朝向国内（国家或帝国）秩序和国际秩序的形成。[14]政治体内部的争议改变了战利品转化为财产的条件；同样，帝国政治也影响着哪些国家可被承认为劫掠行动合法支持者的判断。围绕海上劫掠在多个地点发生的冲突，把一个政治试验不断增多的大西洋，转变成处于帝国影响之下、由不平等国家构成的区域体系。

ratives about the Age of Revolutions as a period in which a “wave” of revolutionary ideology or a “contagion of sovereignty” transformed the region.[9] As Christopher Clark notes in relation to the global political upheavals of 1848, revolutions did not always respond to global currents but instead developed as “cognate” events that unfolded “within kindred cultural and political orders.”[10] In the early nineteenth-century Atlantic, new political entities formed in sync in response to imperial tensions and war, in particular the crisis created by the French invasion of the Iberian Peninsula. An open-ended constitutionalism framed a variety of possible political formations, and new entities grappled with imperial governments that sought in some ways to foster and in other ways to obstruct or limit the formation of new sovereignties.

9. The “contagion of sovereignty” is from Armitage, David, The Declaration of Independence: A Global History (Cambridge: Harvard University Press, 2007), 103 – 4 DOI: 10.4159/9780674020276-004. An example of overreliance on the metaphor of waves is Sivasundaram, Sujit, Waves Across the South: A New History of Revolution and Empire (Chicago: University of Chicago Press, 2021) DOI: 10.7208/chicago/9780226790558.001.0001.

10. Clark, Christopher, Revolutionary Spring: Europe Aflame and the Fight for a New World, 1848–1849 (New York: Crown, 2023), 279 .

[p. 3] There was also more to the region’s political transformation than a set of cognate events. A perceived urgency to establish claims to international belonging gripped the region. Diplomats, merchants, officials, mariners, laborers, and captives surveyed international events and pressures with intense interest and positioned themselves in relation to these changes. Explaining political reordering on an oceanic scale in the period requires close attention to the interpenetration of domestic and international political arenas.[11] It depends, that is, on treating the international order as something other than an already constituted realm hovering beyond the horizon of local, national, and regional politics.[12]

11. On the relation of inside/outside orders in political thought, see Brett, Annabel, Changes of State: Nature and the Limits of the City in Early Modern Natural Law (Princeton: Princeton University Press, 2011); on inside/outside dimensions of empires, see Benton and Ford, *Rage for Order*, 193–195.

12. Bartelson, Jens, Becoming International (New York: Cambridge University Press, 2023) DOI: 10.1017/9781009400718, chapter 1.

[p. 4] This perspective shifts attention away from questions about whether pirates were insiders or outsiders. In this period as in others, the key characteristic of maritime raiding was its flickering quality, the fundamental instability of its legal protections.[13] Like constitutionalism itself, legal practices of privateering and piracy opened simultaneously toward domestic (national or imperial) and international ordering.[14] Just as disputes inside polities altered the conditions under which booty could be turned into property, imperial politics informed judgments about which states might be recognized as legitimate sponsors of raiding. Multi-sited conflicts about sea raiding transformed

13. 关于二十世纪的这些不稳定性，参见 Jatin Dua, *Captured at Sea: Piracy and Protection in the Indian Ocean〔题名译释：海上被俘：印度洋的海盗与保护〕* (Oakland: University of California Press, 2019).

14. 关于宪政主义的国际维度，参见 Golove, David M. and Hulsebosch, Daniel J.,“A Civilized Nation: The Early American Constitution, the Law of Nations, and the Pursuit of International Recognition〔题名译释：文明国家：早期美国宪法、万国法与对国际承认的追求〕,”Columbia Law Review, 85, 4 (2010): 932–1066 ; LaCroix, Alison, The Interbellum Constitution: Union, Commerce, and Slavery in the Age of Revolutions〔题名译释：两次战争之间的宪法：革命时代的联邦、商业与奴隶制〕(New Haven: Yale University Press, 2024). 关于美国主权如何在与国际秩序的关系中形成，参见 Arylck, *The Nation at Sea〔题名译释：海上的国家〕*; Gould, Eliga H., Among the Powers of the Earth: The American Revolution and the Making of a New World Empire〔题名译释：跻身世界列强：美国革命与新世界帝国的形成〕(Cambridge: Harvard University Press, 2014); and Hendrickson, David, Peace Pact: The Lost World of the American Founding〔题名译释：和平契约：美国建国失落的世界〕(Lawerence: University of Kansas Press, 2007).

[p. 4] 私掠争议处于这一过程的核心。为追踪其影响，本文从一艘船的甲板观察大西洋秩序的变化。文章跟随*“不可抗拒号”*及其富于进取心的巴尔的摩船长约翰·丹尼尔斯，考察他在 1818 至 1822 年间两次捕获伊比利亚船只的巡航。[15]丹尼尔斯持有东方共和国颁发的私掠委任状。东方共和国是一个由东岸地区（Banda Oriental，亦称东方省 Provincia Oriental）领导的邦联；东岸原为西班牙帝国在拉普拉塔河地区的领土。丹尼尔斯携战利品返回巴尔的摩后，葡萄牙和西班牙领事对这些捕获提出异议，丹尼尔斯还面临刑事起诉。“不可抗拒号”上数十名参与哗变并带头劫掠的船员，被以海盗罪审判并定罪。由“不可抗拒号”的捕获行为引出的三起案件——两起捕获物案件和一起刑事案件——提交至美国最高法院，并引发了远超丹尼尔斯能否保留战利品这一问题的辩论：什么是国家？战争与叛乱有何区别？海盗行为的法律定义是什么？

15. 由于涉及*“不可抗拒号”*的美国法院文书称他为“John Daniels”，本文使用这一姓名。他在某些美国资料中被称为 John Daniel Danels。在葡萄牙、西班牙和南美洲资料中，这一姓名的变体包括 Danelly、Danele 和 Danell。两篇描述丹尼尔斯活动的文章使用“Danels”：Hopkins, Fred,“For Flag and Profit: The Life of Commodore John Daniel Danels of Baltimore〔题名译释：为了旗帜与利润：巴尔的摩海军准将 John Daniel Danels 的一生〕,”Maryland Historical Magazine, 80:4 (1985); and Head, David, “Independence on the Quarterdeck: Three Baltimore Seafarers, Spanish America, and the Lives of Captains in the Early American Republic〔题名译释：后甲板上的独立：三位巴尔的摩海员、西属美洲与早期美国船长的生活〕,” The Northern Mariner XXIII (January 2013): 1–20 .

[p. 5] 这些问题出现于国际性大西洋形成的关键时刻。循着*“不可抗拒号”*的航迹，我们看到一个在形成同时趋于封闭的国际秩序。丹尼尔斯开始巡航时，这一地区充满各种政治试验，包括政务委员会、城邦、邦联和自称的民族国家。当美国最高法院就“不可抗拒号”及其捕获物作出判决时，只有少数新政治体取得

an Atlantic of proliferating political experiments into a regional system of unequal states under imperial sway.

13. On these instabilities in the twentieth century, see Jatin Dua, *Captured at Sea: Piracy and Protection in the Indian Ocean* (Oakland: University of California Press, 2019).

14. On the international dimensions of constitutionalism, see Golove, David M. and Hulsebosch, Daniel J.,“A Civilized Nation: The Early American Constitution, the Law of Nations, and the Pursuit of International Recognition,”Columbia Law Review, 85, 4 (2010): 932–1066 ; LaCroix, Alison, The Interbellum Constitution: Union, Commerce, and Slavery in the Age of Revolutions (New Haven: Yale University Press, 2024). On American sovereignty forming in relation to international order, see Arylck, *The Nation at Sea*; Gould, Eliga H., Among the Powers of the Earth: The American Revolution and the Making of a New World Empire (Cambridge: Harvard University Press, 2014); and Hendrickson, David, Peace Pact: The Lost World of the American Founding (Lawerence: University of Kansas Press, 2007).

[p. 4] Privateering disputes were at the heart of this process. To trace their effects, this article views the changes in the Atlantic order from the deck of one ship. It follows the *Irresistible* and its enterprising Baltimore captain, John Daniels, on a pair of cruises to capture Iberian vessels between 1818 and 1822.[15] Daniels sailed with a privateering commission from the Oriental Republic, a confederation led by the Banda Oriental, also known as the Provincia Oriental, a former territory of the Spanish empire in the Río de la Plata region. After Daniels returned to Baltimore with his booty, Portuguese and Spanish consuls challenged the captures, and Daniels also faced criminal prosecution. Scores of crew members of the *Irresistible* who had joined a mutiny and led raids were tried and convicted of piracy. Three cases stemming from the captures of the *Irresistible* —two prize cases and one criminal case—reached the U.S. Supreme Court and stimulated debates about much larger issues than the question of whether Daniels could keep his booty: What was a state? What was the difference between war and rebellion? What was the legal definition of piracy?

15. Because he was referred to in U.S. court papers involving the *Irresistible* as “John Daniels,”I use that name. He appears in some U.S. sources as John Daniel Danels. In Portuguese, Spanish, and South American sources, variations of the name include Danelly, Danele, and Danell. Two articles describing Daniels’s activities use “Danels”: Hopkins, Fred,“For Flag and Profit: The Life of Commodore John Daniel Danels of Baltimore,”Maryland Historical Magazine, 80:4 (1985); and Head, David, “Independence on the Quarterdeck: Three Baltimore Seafarers, Spanish America, and the Lives of Captains in the Early American Republic,” The Northern Mariner XXIII (January 2013): 1–20 .

[p. 5] These questions emerged at a pivotal time in the formation of the international Atlantic. Following the *Irresistible*, we spy an international order closing as it formed. When Daniels began his cruise, the region was crowded with political experiments, including juntas, city-states, confederations, and self-proclaimed nations. When the

了民族国家地位。国际承认已成为政治共同体及其领导人无法拒绝的提议。[16]然而，即便获得了一定程度的承认，新国家仍在艰难地界定和扩展其主权能力，而帝国政府对这一过程依然拥有巨大影响。新的大西洋体系，是一个主权国家体系；各国形式上平等，但发动战争的能力与权利却相差悬殊。

16. Bartelson, *Becoming International〔题名译释：成为国际的〕*, 10.

U.S. Supreme Court issued rulings about the *Irresistible* and its captures, only a handful of new polities had acquired the status of nation-states. International recognition had become an offer that political communities and their leaders could not refuse.[16] Yet even as they received a measure of recognition, new states struggled to define and expand their sovereign capacities, and imperial governments retained enormous influence over this process. The new Atlantic system was a system of sovereign states with formal equality but vast differences in the capacity and right to make war.

16. Bartelson, *Becoming International*, 10.

[p. 5] 正在形成的大西洋秩序包含一套有限暴力制度，为海上劫掠保留了空间。帝国向美洲各国施压，要求遏制私掠，但很少有人主张完全禁止私掠。缓慢、部分承认起义政府的政策，意味着英国政府必须避免把所有南美洲劫掠者都归为海盗。与此同时，西班牙政府一面强力施压美国官员，要求限制私掠，一面又支持自身的私掠袭击，尤其是在古巴周边海域。这些趋势的结果，是在把海盗行为视为万国法之下犯罪的修辞日益尖锐的同时，对低烈度海上暴力的保护仍被谨慎保留并不断调整。在大西洋地区成为国际社会的一员，意味着进入一个分层的政治体间秩序：这一秩序受到帝国间的规制，并始终面对帝国暴力的威胁。[17]

17. 关于全球暴力制度，参见 Benton, Lauren, They Called It Peace: Worlds of Imperial Violence〔题名译释：他们称之为和平：帝国暴力的诸世界〕(Princeton: Princeton University Press, 2024), 8 .

[p. 5] The emerging Atlantic order comprised a regime of limited violence that preserved a space for sea raiding. Empires leaned on American states to contain privateering, but few advocated banning it completely. The policy of slow, partial recognition of insurgent governments meant that the British government had to refrain from classing all South American raiders as pirates. The Spanish government, meanwhile, exerted strong pressure on U.S. officials to curb privateering while also sponsoring corsair raids of its own, particularly in the waters around Cuba. The result of these trends was that rhetoric about piracy as a crime under the law of nations was becoming sharper at the same time that protections of low-level maritime violence were being carefully preserved and revised. Becoming international in the Atlantic meant achieving membership in a stratified interpolity order under interimperial regulation and subject to the continued threat of imperial violence.[17]

17. On global regimes of violence, see Benton, Lauren, They Called It Peace: Worlds of Imperial Violence (Princeton: Princeton University Press, 2024), 8 .

[p. 5] 大西洋海上劫掠及其规制，也带来了一些意外后果。奴隶贩子获得并使用私掠许可证，反革命者则借用了起义国家有权发动战争的论证。与“恐怖主义”一词的宽泛用法类似，“海盗”标签的主要用途，是降低海上劫掠支持者在国际秩序中的地位，而不是把某些群体置于秩序之外。尽管有人宣称“海盗是所有人的敌人”具有基础性的法律意义，这种响亮修辞的含义，仍来自国际秩序形成的政治。

[p. 5] Atlantic sea raiding and its regulation also brought some unintended consequences. Slave traders obtained and used privateering licenses, and counterrevolutionaries borrowed arguments about insurgent states' right to make war. Like the capacious use of "terrorism," the label of piracy was deployed mainly to degrade the status of sponsors of sea raiding within the international order rather than to position groups outside it. Despite claims about its foundational legal significance, ringing rhetoric about pirates as enemies of all derived its meaning from the politics of international ordering.

大西洋宪政主义 / Atlantic Constitutionalism

[p. 5] 我们的故事并非始于约翰·丹尼尔斯的母港巴尔的摩，而是始于拉普拉塔河畔。在那里，法国入侵伊比利亚半岛后，西班牙君主制崩溃；流动不定的宪政主义为回应这一崩溃提供了框架。1810 年，布宜诺斯艾利斯成立政务委员会，以填补政治真空，但它在原西班牙各领土上的权力范围仍不确定。一些省级领袖及其追随者，不愿用港口精英的支配来替代欧洲帝国的统治；所有群体也都在回应帝国进攻和吞并的持续威胁。[18]

[p. 5] Our story begins not in Baltimore, the home port of John Daniels, but on the banks of the Río de la Plata, where a fluid constitutionalism framed responses to the collapse of the Spanish monarchy after the French invasion of the Iberian Peninsula. When a junta formed in Buenos Aires in 1810 to fill the political void, the scope of its authority across former Spanish territories remained uncertain. A set of provincial leaders and their followers were reluctant to trade rule by European empires for the dominance of port elites, and all groups were responding to the persisting

18. Chiaramonte, José Carlos, Ciudades, provincias, estados: Orígenes de la Nación Argentina (1800 – 1846)〔题名译释：城市、省份、国家：阿根廷民族的起源，1800—1846〕(Buenos Aires: Espasa Calpe, 1997); Rodriguez, Jaime E., The Independence of Spanish America〔题名译释：西属美洲的独立〕(Cambridge: Cambridge University Press, 1998) DOI: 10.1017/CBO9780511721137; and Echeverri, Marcela and Soriano, Cristina, eds., The Cambridge Companion to Latin American Independence〔题名译释：剑桥拉丁美洲独立指南〕(Cambridge: Cambridge University Press, 2023) DOI: 10.1017/9781108679336.

[p. 6] 其结果之一，是政治分裂。在乌拉圭河与拉普拉塔河沿岸，一位久经战阵的上校何塞·赫尔瓦西奥·阿蒂加斯，加入了对抗集中于蒙得维的亚的西班牙保王派军队的战斗，随后又策划与布宜诺斯艾利斯决裂。早在 1815 年正式决裂之前，阿蒂加斯便已为该地区的半自治奠定基础。1813 年初，统治布宜诺斯艾利斯的第二届三人执政团召开制宪会议时，阿蒂加斯向东岸地区的代表发出一套训令。这些训令提供了阿蒂加斯主义思想的入门纲要：一种为多个尺度上的主权保留可能性的宪政主义。

[p. 6] 阿蒂加斯赋予联合省政府一组有限的职能，并提议为东岸地区保留部分主权权力。联合省将承担关键特权，包括制定规范省际关系的“根本法”的权利；在与外国势力的大多数——但并非全部——交往中代表各省的权利；以及组织共同防御、维持各省武装力量的权利。阿蒂加斯以如下说法支持这些主张：主权属于人民（*los pueblos*），并以不同程度委托给他的政府和联合省政府。[19]

19. Frega, Ana, “La virtud y el poder: La soveranía particular de los pueblos en el proyecto artiguista〔题名译释：美德与权力：阿蒂加斯方案中各城镇的特有主权〕,” in Goldman, Noemi and Salvatore, Ricardo, eds., Caudillismos rioplatenses: Nuevas miradas a un viejo problema〔题名译释：拉普拉塔地区的考迪罗主义：旧问题的新视角〕(Buenos Aires: Eudeba, 1998), 101–133 .

[p. 6] 阿蒂加斯向东方省代表发出的训令，博采多种来源。二十条训令中的文本，改写了美国《独立宣言》《邦联条例》、弗吉尼亚州与马萨诸塞州宪法，以及美国宪法中的段落。[20]这份文件类似于独立宣言，因为它宣布解除殖民地与西班牙君主制之间的纽带，并确立东方省作为主权实体的存在。[21]第 11 条改写美国《邦联条例》和马萨诸塞州宪法，指出东方省将“保留其主权、自由与独立，以及联合省邦联在大会上未明确委托的一切权力、管辖权和权利”。[22] 第 10 条把各省之间的契约称为“牢固的友谊纽带”。[23]

20. 这些文本作为附录，出现在托马斯·潘恩的《为大陆独立辩护》（The Independence of the Mainland Justified）中。关于阿蒂加斯对这些来源的运用，参见 Muñoz, Eugenio Petit, Artigas y su ideario a través de seis series documentales〔题名译释：透过六组文献看阿蒂加斯及其思想〕(Montevideo: Universidad de la República Oriental del Uruguay, 1956). 另参 Miranda, Hector, Las Instrucciones del año XIII〔题名译

threat of imperial attack and annexation.[18]

18. Chiaramonte, José Carlos, Ciudades, provincias, estados: Orígenes de la Nación Argentina (1800 – 1846) (Buenos Aires: Espasa Calpe, 1997); Rodriguez, Jaime E., The Independence of Spanish America (Cambridge: Cambridge University Press, 1998) DOI: 10.1017/CBO9780511721137; and Echeverri, Marcela and Soriano, Cristina, eds., The Cambridge Companion to Latin American Independence (Cambridge: Cambridge University Press, 2023) DOI: 10.1017/9781108679336.

[p. 6] One result was political fragmentation. On land bordering the Río Uruguay and the Río de la Plata, a war-tested colonel named José Gervasio Artigas joined the fight against loyalist Spanish forces concentrated at Montevideo, then engineered a break with Buenos Aires. Even before the 1815 rupture, Artigas was laying the groundwork for the territory’s semi-autonomy. At the beginning of 1813, when the second triumvirate to rule Buenos Aires called a Constituent Assembly, Artigas issued a set of instructions to delegates from the Banda Oriental. The instructions provide a primer of Artiguista thought—a constitutionalism that left open the possibility of sovereignty at multiple scales.

[p. 6] Artigas assigned the government of the United Provinces a limited set of capacities and proposed reserving some sovereign authority for the Banda Oriental. The United Provinces would assume key prerogatives, including the right to establish “fundamental laws” regulating relations among provinces; the right to represent the provinces in most—but not all—dealings with foreign powers; and the right to organize collective defense and maintain provincial military forces. Artigas supported these claims by stating that sovereignty resided in the people (*los pueblos*) and was delegated, in different measure, to his government and to the government of the United Provinces.[19]

19. Frega, Ana, “La virtud y el poder: La soveranía particular de los pueblos en el proyecto artiguista,” in Goldman, Noemi and Salvatore, Ricardo, eds., Caudillismos rioplatenses: Nuevas miradas a un viejo problema (Buenos Aires: Eudeba, 1998), 101–133 .

[p. 6] Artigas’s instructions to the delegates from the Provincia Oriental drew from eclectic sources. The twenty articles include text paraphrasing passages from the U.S. Declaration of Independence, the Articles of Confederation, the Constitutions of Virginia and Massachusetts, and the U.S. Constitution.[20] The document resembled a declaration of independence in that it announced the dissolution of ties between the colonies and the Spanish monarchy and established the existence of the Provincia Oriental as a sovereign entity.[21] Paraphrasing the U.S. Articles of Confederation and the Constitution of Massachusetts, Article 11 stated that the Provincia Oriental would “retain its sovereignty, liberty, and independence, all power, jurisdiction, and rights not delegated explicitly by the Confederation of the United Provinces at the Congress.”[22] Article 10 characterized the pact among provinces as “a firm bond of friendship.”[23]

释：1813 年训令〉(Montevideo: A. Barreiro y Ramos, 1910); Caetano, Gerardo and Ribeiro, Ana, eds., Las Instrucciones del año XIII: 200 años después〔题名译释：1813 年训令：二百年之后〕(Montevideo: Planeta, 2013).

21. 关于独立宣言作为一种独特文类，参见 David Armitage, *The Declaration of Independence〔题名译释：独立宣言〕*.

22. Miranda, *Las Instrucciones del año XIII〔题名译释：1813 年训令〕*, 413. 由本文作者译出。

23. Miranda, *Las Instrucciones del año XIII〔题名译释：1813 年训令〕*, 411–417. 由本文作者译出。

[p. 7] 在发布训令的前后，阿蒂加斯解释说，多种宪制设计都可以与主权在民的承认相一致。面对追随者，他宣称自己的权威“源自你们，并在作为主权者的你们亲临时终止”。[24] 他指出，制宪会议的权威，并非来自人民将对西班牙王室的忠诚转移给新政府。会议的合法性只能来自一个保全各省自由的契约；任何新政治体制的基础，也都依赖 *los pueblos* 的权威。阿蒂加斯自称 *Protector de los Pueblos Libres*（自由人民 / 自由城镇的保护者），并向一位代表解释：“*pueblos* 的各自主权，将被明确宣告并维护，作为我们革命的唯一目标。”[25] 尽管在理论上，自由人民的主权可以委托给任何层级的权力机关，阿蒂加斯仍认为，城镇是具有特殊合法性的政治实体。“pueblos libres”这一短语，毫不含糊地指向人民（*los pueblos*）的主权，同时又唤起这样一种看法：最小的聚落，即城镇或 *pueblos*，是接近人民的主权存放之所。正如一位学者数十年前所指出的，这一观念代表了“阿蒂加斯主义思想的精髓”。[26]

24. 1813 年 4 月 4 日在四月大会上的演说。José Gervasio Artigas and Lucía Sala de Touron, *José Gervasio Artigas: Obra Selecta〔题名译释：何塞 • 赫尔瓦西奥 • 阿蒂加斯选集〕* (Caracas: Fundación Biblioteca Ayacuch, 2000), 22. 由本文作者译出。

25. 转引自 Juan Antonio Rebelle, *Lo hispánico en la acción y en el pensamiento político de Artigas〔题名译释：阿蒂加斯行动与政治思想中的西班牙因素〕* (Montevideo: s.n., 1953), 16–17. 由本文作者译出。

26. Rebelle, *Lo hispánico en la acción y en el pensamiento político de Artigas〔题名译释：阿蒂加斯行动与政治思想中的西班牙因素〕*, 20 (“la esencia del pensamiento artiguista”). 1813 年的“东方省宪法草案”首先列出“构成东方省的……城镇”：Canelones, Piedras, Pando, Minas, Maldonado, San Carlos, Rocha, Santa Teresa, Santa Lucía, Pintado, San José, el Colla, Colonia, Espinillo, Víboras, Santo Domingo, Soriano, Mercedes, Porongos, Paysandú, Cerro Large, and Belén. Felipe Pigna, ed., *José Gervasio Artigas: Escritos politicos y económicos〔题名译释：何塞 • 赫尔瓦西奥 • 阿蒂加斯政治经济文选〕* (Buenos Aires: Grupo Editorial Planeta, 2010), 51–52. 关于城镇与城市在拉普拉塔革命中的核心作用，参见 Chiaramonte, *Ciudades, provincias, estados〔题名译释：城市、省份、国家〕*, 145–47; and Adelman, Jeremy, Sovereignty and Revolution in the Iberian Atlantic〔题名译释：伊比利亚大西洋的主权与革命〕(Princeton: Princeton University Press, 2009).

20. These texts appeared as appendices of Thomas Paine’s “The Independence of the Mainland Justified.” On Artigas’ s use of these sources, see Muñoz, Eugenio Petit, Artigas y su ideario a través de seis series documentales (Montevideo: Universidad de la República Oriental del Uruguay, 1956). See also Miranda, Hector, Las Instrucciones del año XIII (Montevideo: A. Barreiro y Ramos, 1910); Caetano, Gerardo and Ribeiro, Ana, eds., Las Instrucciones del año XIII: 200 años después (Montevideo: Planeta, 2013).

21. On declarations of independence as a distinctive genre, see David Armitage, *The Declaration of Independence.*

22. Miranda, *Las Instrucciones del año XIII*, 413. My translation.

23. Miranda, *Las Instrucciones del año XIII*, 411 – 417. My translation.

[p. 7] Around the time that he issued the instructions, Artigas explained that a variety of constitutional designs would be consistent with the recognition that sovereignty resided in the people. Addressing his followers, Artigas proclaimed that his own authority “emanates from you and ceases with your sovereign presence.”[24] The authority of the Constituent Assembly, he stated, did not flow from the transfer of the people’s loyalty from the Spanish crown to the new government. The assembly’s legitimacy could derive only from a pact that left the liberty of the provinces intact, and the foundation of any new political regime would also depend on the authority of *los pueblos*. Artigas styled himself the *Protector de los Pueblos Libres* and explained to one delegate, “The particular sovereignty of the *pueblos* will be explicitly declared and sustained as the singular object of our revolution.”[25] Although in theory the sovereignty of free peoples might be assigned to authorities at any level, Artigas regarded towns as political entities with special legitimacy. The phrase “pueblos libres” referred unambiguously to the sovereignty of the people (*los pueblos*), but it also evoked the view that the smallest settlements (towns or *pueblos*) were repositories of sovereignty close to the people—an idea that represented, as one scholar noted decades ago, “the essence of Artiguista thought.”[26]

24. Speech of 4 April 1813 to the Congreso de Abril. José Gervasio Artigas and Lucía Sala de Touron, *José Gervasio Artigas: Obra Selecta* (Caracas: Fundación Biblioteca Ayacuch, 2000), 22. My translation.

25. Quoted in Juan Antonio Rebelle, *Lo hispánico en la acción y en el pensamiento político de Artigas* (Montevideo: s.n., 1953), 16–17. My translation.

26. Rebelle, *Lo hispánico en la acción y en el pensamiento político de Artigas*, 20 (“la esencia del pensamiento artiguista”). The “proyecto de constitución para la Provincia Oriental” of 1813 begins by listing the “pueblos …que forman la Provincia Oriental”: Canelones, Piedras, Pando, Minas, Maldonado, San Carlos, Rocha, Santa Teresa, Santa Lucía, Pintado, San José, el Colla, Colonia, Espinillo, Víboras, Santo Domingo, Soriano, Mercedes, Porongos, Paysandú, Cerro Large, and Belén. Felipe Pigna, ed., *José Gervasio Artigas: Escritos politicos y económicos* (Buenos Aires: Grupo Editorial Planeta, 2010), 51–52. On the central role of towns and cities in the Río de la Plata revolution, see Chiaramonte, *Ciudades, provincias, estados*, 145–47; and Adelman, Jeremy, Sovereignty and Revolution in the Iberian

[p. 7] 阿蒂加斯并不是在建立一个民族国家。[27]他大量援引美国宪制文件，也并非仅仅为了改造和采用美国的国家模式。[28]无论如何，这一模式本身充满歧义，并不容易借用。美国是宪制冲突的温床，尚未围绕联邦政府与州政府这一二元结构组织起来，而是牵涉一大批权威主张者，包括“城镇、城市和私人公民的集会”。[29] 该国也正进入一场缓慢发酵的宪制危机，核心是奴隶制向西部领土的扩展。[30]阿蒂加斯之所以受到美国文本吸引，恰恰因为它们肯定主权可以具有多种配置：面对帝国侵略，这种灵活性是他在政治上生存所必需的。

27. Frega 指出，阿蒂加斯通过类似国家的制度，巩固了对该领土的权威 (Ana Frega, “La virtud y el poder〔题名译释：美德与权力〕”).

28. Portillo, *Crisis Atlantica〔题名译释：大西洋危机〕*, 116.

29. LaCroix, *The Interbellum Constitution〔题名译释：两次战争之间的宪法〕*, 2.

30. Belko, William S., ed., Contesting the Constitution: Congress Debates the Missouri Crisis, 1819–1821〔题名译释：争论宪法：国会辩论密苏里危机，1819—1821〕(Columbia: University of Missouri Press, 2021); Pasley, Jeffrey L. and Hammond, John Craig, eds., A Fire Bell in the Past: The Missouri Crisis at 200〔题名译释：历史中的火警钟：密苏里危机二百年〕(Columbia: University of Missouri Press, 2021).

[p. 7] 多重威胁正在逼近。阿蒂加斯派面临葡萄牙—巴西军队入侵的可能、复兴中的西班牙帝国重新征服的危险，以及英国利用地区纷争再次谋求占领的可能——英国曾在 1806 至 1807 年入侵。这些条件增强了取得国际承认的意愿。[31]为实现这一目标，并强化该政治体的自卫能力，阿蒂加斯主张发动战争的权利，其中包括支持私掠的权力。

31. 关于拉丁美洲代理人在伦敦建立外交关系的努力，参见 Racine, Karen, Francisco de Miranda, a Transatlantic Life in the Age of Revolution〔题名译释：弗朗西斯科 • 德米兰达：革命时代的跨大西洋人生〕(Wilmington: Scholarly Resources, 2003); and Jaksic, Ivan, Andrés Bello: Scholarship and Nation-Building in Nineteenth-Century Latin America〔题名译释：安德烈斯 • 贝略：十九世纪拉丁美洲的学术与国家建设〕(New York: Cambridge University Press, 2001).

Atlantic (Princeton: Princeton University Press, 2009).

[p. 7] Artigas was not founding a nation.[27] Nor did he intend, with his extensive use of U.S. constitutional documents, merely to adapt a U.S. model of statehood.[28] That model was, in any case, full of ambiguities and not easy to appropriate. The United States was a hotbed of constitutional conflicts, not yet organized around the dyad of federal and state governments but involving a jumble of claimants to authority, including “towns, cities, and assemblies of private citizens.”[29] The country was also entering a slow-burning constitutional crisis centered on the extension of slavery to western territories.[30] Artigas was drawn to U.S. texts precisely because they affirmed the possibility of multiple configurations of sovereignty, flexibility that was necessary to his political survival in the face of imperial aggression.

27. Frega points out that Artigas consolidated his authority over the territory through state-like institutions (Ana Frega, “La virtud y el poder”).

28. Portillo, *Crisis Atlantica*, 116.

29. LaCroix, *The Interbellum Constitution*, 2.

30. Belko, William S., ed., Contesting the Constitution: Congress Debates the Missouri Crisis, 1819–1821 (Columbia: University of Missouri Press, 2021); Pasley, Jeffrey L. and Hammond, John Craig, eds., A Fire Bell in the Past: The Missouri Crisis at 200 (Columbia: University of Missouri Press, 2021).

[p. 7] Multiple threats were looming. Artiguistas faced the likelihood of invasion by Luso-Brazilian forces, the danger of re-conquest by a resurgent Spanish empire, and the possibility that the British, who had invaded in 1806–1807, might take advantage of regional strife to mount another attempt at occupation. These conditions heightened interest in achieving international recognition.[31] In service to that goal and to fortify the polity’s ability to defend itself, Artigas claimed the right to make war, including the authority to sponsor privateering.

31. On efforts of Latin American agents in London to establish diplomatic relations, see Racine, Karen, Francisco de Miranda, a Transatlantic Life in the Age of Revolution (Wilmington: Scholarly Resources, 2003); and Jaksic, Ivan, Andrés Bello: Scholarship and Nation-Building in Nineteenth-Century Latin America (New York: Cambridge University Press, 2001).

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[p. 8] 阿蒂加斯面对的是一片劫掠之海。到十八世纪下半叶，大西洋世界各地关于战时船只捕获的裁判惯例，已相对一致。每个帝国都有自己的捕获法庭，捕获者应将被俘船只及其货物驶送至己方的法庭裁判。理论上，所有权利主张者，不分国籍，都可以提出证据，证明船只或货物系被非法扣押，应予归还。[32]

32. Nathan Perl-Rosenthal, “An Interpolity Legal Regime in the Eighteenth Century: Procedural Law of Prize〔题名译释：十八世纪的政治体间法律制度：捕获物程序法〕,” *Past & Present* 265, Supplement 17 (November 2024): 169–192.

[p. 8] Artigas looked out on an ocean of raiding. By the second half of the eighteenth century, conventions for adjudicating captures of ships in wartime were relatively consistent across the Atlantic world. Each empire had its own prize courts, and captors were supposed to sail captured ships and their cargoes to their own courts for adjudication. In theory, all claimants, regardless of nationality, could present evidence that ships or cargoes had been seized unlawfully and should be returned.[32]

32. Nathan Perl-Rosenthal, “An Interpolity Legal Regime in the

[p. 8] 这一相对稳定的政治体间框架，与种种规避行为并存。船东、商人与海员设法绕开法律要求，或仅在纸面上遵守。海上劫掠者创造性地解释委任状的条款，有时不把捕获物送交捕获法庭，或将战利品送至管辖权存疑的法庭，在那里，捕获可以迅速获得裁决，证据也不会受到仔细审查。船长及其支持者同样擅长法律操作。私掠委任状可以买到；船只与货物的国籍，也可通过在纸面上变更所有者，或在进港前把货物转移到中立船只上而改变。伪装为中立船航行的敌方船只激增，使这一制度陷入混乱，而不同国际联盟对战时中立航运的法律处理持不同立场。[33]从捕获物中获利的动机，刺激了这一地区捕获法庭数量的增长，其中一些在帝国间相对和平的时期仍持续运作。

33. Kulsrud, Carl, Maritime Neutrality to 1780: A History of the Main Principles Governing Neutrality and Belligerency to 1780〔题名译释：1780 年以前的海上中立：规范中立与交战的主要原则史〕(Boston: Little, Brown, 1936); Moats, Sandra, Navigating Neutrality: Early American Governance in the Turbulent Atlantic〔题名译释：驾驭中立：动荡大西洋中的早期美国治理〕(Charlottesville: University of Virginia Press, 2021) DOI: 10.52156/m.5645; and Arlyck, *The Nation at Sea〔题名译释：海上的国家〕*, 第一部分。

[p. 8] 拉丁美洲的新政府认识到这一流动制度中的机会，迅速开始向私掠者发放许可，并派招募人员前往北美港口。1816 年，美国公民托马斯 • 泰勒作为布宜诺斯艾利斯政府使节抵达巴尔的摩，携带少量空白委任状；他把这些委任状交给——更可能是卖给——巴尔的摩的海员。其他南美洲代理人随后而来；为新政府劫掠西班牙船只的机会，迅速成为南北美洲港口中流传的消息。[34]

34. Bemis, Samuel Flagg, “Early Diplomatic Missions from Buenos Aires to the United States, 1811–1824〔题名译释：布宜诺斯艾利斯早期赴美外交使团，1811—1824〕,” Proceedings of the American Antiquarian Society, 49, 1 (April 1939): 29–30 .

[p. 9] 在拉普拉塔河地区，私掠者对防务至关重要。1815 年，阿蒂加斯的部队将布宜诺斯艾利斯军队逐出蒙得维的亚后，他领导组建 Liga Federal（联邦同盟），即由东岸地区与科尔多瓦、科连特斯、恩特雷里奥斯、米西奥内斯和圣菲诸省组成的邦联。1816 年，他开始颁发 *patentes de corso*（私掠委任状），把自己列为“东方人的首领与东方共和国人民的保护者”，并指示持有人“尊重共和国旗帜，依照万国法，以被认为最适当的方式攻击其敌人”。[35] 私掠委任状使用“República Oriental”（东方共和国）这一名称，是有意而且具有策略性的。它把邦联标示为具有战争权的国际实体，并宣布阿蒂加斯为国家元首。这一做法，与阿蒂加斯仅在对外交往中使用“República Oriental”、而在领土内部及地区内流通的文件中使用“Banda Oriental”和“Provincia Oriental”的习惯一致。[36]这种两分也可能对他不利。葡萄牙—巴西官员坚持把阿蒂加斯描述为东岸地区的首脑，而非邦联首脑；美国法院和政府官

Eighteenth Century: Procedural Law of Prize,” *Past & Present* 265, Supplement 17 (November 2024): 169–192.

[p. 8] This relatively stable interpolity framework coexisted with a jumble of evasive practices. Ship owners, merchants, and mariners maneuvered to sidestep legal requirements or conform to them only on paper. Sea raiders creatively interpreted the terms of their commissions, and they sometimes did not take their captures to prize courts, or they presented their booty in courts of uncertain jurisdiction where captures could be adjudicated quickly and without close scrutiny of evidence. Captains and their sponsors were equally adept at legal maneuvering. It was possible to purchase privateering commissions and to alter the nationality of ships and goods by changing owners on paper or by transferring goods to neutral vessels before entering ports. A surge in enemy ships sailing as neutrals confounded the system, with international coalitions favoring different legal approaches to neutral shipping in wartime.[33] Incentives to profit from prizes stimulated the proliferation of prize courts around the region, with some remaining active in periods of relative interimperial peace.

33. Kulsrud, Carl, Maritime Neutrality to 1780: A History of the Main Principles Governing Neutrality and Belligerency to 1780 (Boston: Little, Brown, 1936); Moats, Sandra, Navigating Neutrality: Early American Governance in the Turbulent Atlantic (Charlottesville: University of Virginia Press, 2021) DOI: 10.52156/m.5645; and Arlyck, *The Nation at Sea*, Part I.

[p. 8] Recognizing opportunities in this fluid system, new Latin American governments quickly began to license privateers and dispatch recruiters to North American ports. In 1816, American citizen Thomas Taylor arrived in Baltimore as an envoy of the Buenos Aires government carrying a small number of blank commissions, which he either gave or—much more likely—sold to Baltimore mariners. Other South American agents followed, and news surged through South and North American ports about opportunities to raid for new governments against Spanish shipping.[34]

34. Bemis, Samuel Flagg, “Early Diplomatic Missions from Buenos Aires to the United States, 1811–1824,” Proceedings of the American Antiquarian Society, 49, 1 (April 1939): 29–30 .

[p. 9] In the Río de la Plata, privateers were vital to defense. In 1815, after his forces had expelled Buenos Aires troops from Montevideo, Artigas led the movement to form the Liga Federal (Federal League), a confederation of the Banda Oriental and the provinces of Córdoba, Corrientes, Entre Ríos, Misiones, and Santa Fe. In 1816, he began to issue *patentes de corso* (privateering commissions) listing Artigas as “the Chief of the Orientales and Protector of the Peoples of the República Oriental” and instructing holders to “respect the Flag of the Republic and attack its enemies in the manner judged most opportune according to the Law of Nations.”[35] The use of the “República Oriental” on the privateering commissions was intentional and strategic. It identified the confederation as an international entity with the right to make war and announced Artigas as a head of state. The practice was consistent with Artigas’s use of “República Oriental” only in external

员也采纳了这一更有限的称谓。

35. Beraza, *Los Corsarios de Artigas〔题名译释：阿蒂加斯的私掠者〕*, 32. 由本文作者译出。

36. Frega, Ana,“Uruguayos y orientales: Itinerario de una síntesis compleja〔题名译释：乌拉圭人与东方人：一种复杂综合的历程〕,”in Chiaramonte, J. C., Marichal, C., & Granados, A., eds., Crear la nación. Los nombres de los países de América Latina: Identidades políticas y nacionalismo〔题名译释：创造民族：拉丁美洲各国的名称、政治身份与民族主义〕(Buenos Aires: Editorial Sudamericana, 2008), 95–112 .

[p. 9] 船长们很快就了解到，阿蒂加斯签署的委任状具有特殊价值。联合省政府的委任状规定，私掠者只能攻击西班牙船只；阿蒂加斯的 *patentes* 却授权捕获葡萄牙和西班牙双方的船只，使私掠者有可能从巴西及亚洲通往葡萄牙的高利润贸易中获利。但其中也存在不利之处和危险。布宜诺斯艾利斯的捕获法庭不接受这些委任状，而其他管辖区——包括美国——的法庭，会不会承认这些 *patentes* 是捕获敌方船只与货物的合法授权，仍不确定。[37]对葡萄牙旗船航运的扰乱，强化了葡萄牙发动入侵的决心；1817 年 1 月，蒙得维的亚落入葡萄牙—巴西军队之手，科洛尼亚随后失守。东方共和国继续支持私掠，但已成为一个没有主要港口、也没有正常运作的捕获法庭的支持者。[38]

37. Agustín Beraza, *Los Corsarios de Artigas〔题名译释：阿蒂加斯的私掠者〕* (Montevideo: Imprenta Nacional, 1949), 36; Bealer, Lewis Winkler, Los corsarios de Buenos Aires, sus actividades en las guerras hispano-americanas de la independencia, 1815–1821〔题名译释：布宜诺斯艾利斯的私掠者及其在西属美洲独立战争中的活动，1815—1821〕(Buenos Aires: Publicaciones del Instituto de Investigaciones Históricas LXXII, 1937).

38. 关于阿蒂加斯在没有港口的情况下支持私掠者，参见国务卿 John Quincy Adams 致 Luis de Onís, in William R. Manning, *Diplomatic Correspondence of the United States Concerning Independence of the Latin-American Nations, Vol. 1〔题名译释：美国有关拉丁美洲各国独立的外交通信，第 1 卷〕* (New York, Oxford University Press, 1925), 88–91, 89.

[p. 9] 毫无疑问，阿蒂加斯正在运用这些委任状，确立自己作为国家元首的地位。他制定一份名为“Reglamento del Corso”（《私掠条例》）的文件，概述私掠者应遵循的程序及捕获物的裁判程序，以强化颁发委任状这一行为的官方性质。1817 年，在葡萄牙—巴西入侵期间，为增加针对葡萄牙船只的私掠袭击，阿蒂加斯向美国驻布宜诺斯艾利斯领事托马斯 • 劳埃德 • 哈尔西提供了一批空白委任状。哈尔西在普里菲卡西翁的总部与阿蒂加斯会面；在那里，阿蒂加斯交给他一封致詹姆斯 • 门罗总统的信，其写法是一个国家元首致另一个国家元首的讯息。[39]

39. José Artigas 将军致 James Monroe，1817 年 9 月 1 日, in Manning, *Diplomatic Correspondence〔题名译释：外交通信〕*, 2175. 布宜诺斯艾利斯官员对哈尔西会见阿蒂加斯极为愤怒。1818 年 1 月，将哈尔西逐出该城的命令很快被撤销；但联合省最高执政普埃雷东致信詹姆斯 • 门罗总统，抱怨哈尔西“订立有关私掠的契约，必然使我统辖的各省与其他

communications and of“Banda Oriental”and“Provincia Oriental”on documents circulating within the territory and region.[36] The bifurcation could also work against him. Luso-Brazilian officials would insist on representing Artigas as the head of the Banda Oriental, not the confederation, and the more limited designation was adopted by U.S. courts and U.S. government officials.

35. Beraza, *Los Corsarios de Artigas*, 32. My translation.

36. Frega, Ana,“Uruguayos y orientales: Itinerario de una síntesis compleja,”in Chiaramonte, J. C., Marichal, C., & Granados, A., eds., Crear la nación. Los nombres de los países de América Latina: Identidades políticas y nacionalismo (Buenos Aires: Editorial Sudamericana, 2008), 95–112 .

[p. 9] Captains quickly learned about the peculiar value of the commissions signed by Artigas. Whereas commissions from the government of the United Provinces specified that privateers could attack only Spanish ships, Artigas’s *patentes* authorized captures of both Portuguese and Spanish vessels, opening to privateers the possibility of tapping into the lucrative trade from Brazil and Asia to Portugal. But there were downsides and dangers. The commissions were not accepted in Buenos Aires prize courts, and it remained uncertain whether courts in other jurisdictions, including the United States, would recognize the *patentes* as legitimate authorization to capture enemy ships and cargo.[37] The disruptions to Portuguese-flagged shipping hardened Portuguese resolve to mount an invasion, and Montevideo fell to Luso-Brazilian forces in January 1817, followed by Colonia. The Oriental Republic persisted as a privateering sponsor, but it became a sponsor with no major port and no functioning prize court.[38]

37. Agustín Beraza, *Los Corsarios de Artigas* (Montevideo: Imprenta Nacional, 1949), 36; Bealer, Lewis Winkler, Los corsarios de Buenos Aires, sus actividades en las guerras hispano-americanas de la independencia, 1815 – 1821 (Buenos Aires: Publicaciones del Instituto de Investigaciones Históricas LXXII, 1937).

38. On Artigas sponsoring privateers without a port, see John Quincy Adams, Secretary of State, to Luis de Onís, in William R. Manning, *Diplomatic Correspondence of the United States Concerning Independence of the Latin-American Nations, Vol. 1* (New York, Oxford University Press, 1925), 88–91, 89.

[p. 9] There is no question that Artigas was deploying the commissions to position himself as a head of state. He burnished the official nature of the act of issuing the commissions by producing a document called the “Reglamento del Corso,”which outlined procedures for privateers and the adjudication of prizes. In 1817, in an effort to increase privateering attacks on Portuguese shipping in the midst of the Luso-Brazilian invasion, Artigas supplied a set of blank commissions to the United States consul in Buenos Aires, Thomas Lloyd Halsey, who met with Artigas at his headquarters in Purificación. There, Artigas gave Halsey a letter for President James Monroe, composed as a message from one head of state to another.[39]

39. General José Artigas to James Monroe, 1 September 1817, in Manning, *Diplomatic Correspondence*, 2175. Officials in Buenos Aires were furious that Halsey had met with Artigas.

国家发生牵连”，其行为已经“近乎滥用权力”。南美联合省最高执政 Juan Martín Pueyrredón 致美国总统 James Monroe，1818 年 1 月 31 日, Manning, *Diplomatic Correspondence〔题名译释：外交通信〕*, 374–75, 375. 哈尔西最终被召回，卸任领事；国务卿约翰 • 昆西 • 亚当斯拒绝屈从于哈尔西家乡罗得岛州参议员的压力，没有恢复其职务。亚当斯在日记中评论说，哈尔西“使布宜诺斯艾利斯政府和他自己的政府，同样对他厌恶”。1820 年 5 月 6 日日记, The John Quincy Adams Digital Diary〔题名译释：约翰 • 昆西 • 亚当斯数字日记〕, 发表于马萨诸塞历史学会 Primary Source Cooperative 平台: 网址：https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1820-05-p324--entry6?navmode=searchresults&doci=2&ss=obnoxious|Ayres.

An order to expel Halsey from the city in January 1818 was quickly rescinded, but Pueyrredón, Supreme Director of the United Provinces, wrote to President James Monroe to complain that Halsey’s behavior had “bordered on the abuse of power” when he “entered into contracts concerning privateering which must necessarily compromise the Provinces under my command with the other Nations.” Juan Martín Pueyrredón, Supreme Director of the Untied Provinces of South America, to James Monroe, President of the United States, 31 January 1818, Manning, *Diplomatic Correspondence*, 374–75, 375. Halsey was eventually recalled as consul, and John Quincy Adams as Secretary of State refused to yield to pressures of senators from Rhode Island, Halsey’s home state, to reinstate him. Adams commented in his diary that Halsey “had made himself as obnoxious to the Government at Buenos Ayres, as to his own.” 6 May 1820 entry, The John Quincy Adams Digital Diary, published in the Primary Source Cooperative at the Massachusetts Historical Society: At: https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1820-05-p324--entry6?navmode=searchresults&doci=2&ss=obnoxious|Ayres.

[p. 10] 作为扩大战争的策略，分发空白委任状十分有效。1817 至 1820 年，阿蒂加斯被孤立于葡萄牙—巴西入侵者与暗怀敌意的布宜诺斯艾利斯政府之间；而他签署的委任状，却在巴尔的摩、萨凡纳、诺福克、查尔斯顿和普罗维登斯流通，针对伊比利亚船只、横跨大西洋与加勒比海的劫掠巡航日益密集。1817 年，美国政府采取行动，限制南美洲私掠船进入美国港口后，一些劫掠者开始在海上卸下从葡萄牙旗船夺得的战利品。另一些则把捕获的船只和货物送至加勒比海的捕获法庭，尤其是委内瑞拉一带的胡安格列戈和安戈斯图拉，以取得合法捕获物的裁定。没有人确切知道，这些策略能否让南美洲劫掠者在美国港口被当作持有合法许可的私掠者；但愿意冒险的海员从不缺乏。

[p. 10] As a strategy for widening the war, the distribution of blank commissions was very effective. Between 1817 and 1820, with Artigas isolated between Luso-Brazilian invaders and the quietly hostile Buenos Aires government, commissions signed by him were circulating in Baltimore, Savannah, Norfolk, Charleston, and Providence, and cruises against Iberian shipping across the Atlantic and Caribbean were intensifying. When the U.S. government acted to restrict the entry of South American privateers into U.S. ports in 1817, some raiders began offloading booty from Portuguese-flagged vessels at sea. Others took captured ships and cargo to prize courts in the Caribbean, especially at Juan Griego and Angostura off Venezuela, to have the captures declared good prizes. No one knew with certainty whether such tactics would enable South American raiders to be treated as legitimate, licensed privateers in U.S. ports, but there was no shortage of mariners willing to assume the risk.

*“不可抗拒号”*的劫掠 / Raids of the *Irresistible*

[p. 10] 作为劫掠者，约翰 • 丹尼尔斯并非新手。他在 1812 年战争期间担任私掠者，积累了登船与夺船的经验。[40]1814 年和平到来后，丹尼尔斯重返商业贸易，为 D’Arcy and Didier 商行航行。战前，巴尔的摩在西印度群岛市场中居于有利位置。它是将宾夕法尼亚农场小麦运出的最近美国港口，与在加勒比海经营的法国和西班牙商行联系密切。丹尼尔斯可能以妻子的嫁妆作为投资，建造了一艘纵帆船，替 D’Arcy and Didier 商行开展通往海地和法国的商业航行。[41]

40. 丹尼尔斯作为战时私掠者，并不特别成功。最初几次出航，他指挥的两艘船被英国船只捕获，自己仅捕获少量小船。第四次巡航取得了贵重捕获物，但丹尼尔斯在五月岬外海搁浅两次：一次出于意外，一次则是为了避免被英国封锁舰艇捕获而故意为之。Hopkins, “For Flag and Profit〔题名译释：为了旗帜与利润〕,” 392–401, 393–94. 相比之下，另一位后来成为南美洲私掠者的巴尔的摩船长约瑟夫 • 阿尔梅达，在战争期间捕获 30 艘船，获得 46,000 美元净利。Head, “Independence on the Quarterdeck〔题名译释：后甲板上的独立〕,” 7.

[p. 10] As a raider, John Daniels was not a beginner. He had acquired experience in boarding and seizing ships while serving as a privateer in the War of 1812.[40] When peace arrived in 1814, Daniels returned to commercial trading, sailing for the merchant house of D’Arcy and Didier. Before the war, Baltimore had been in a favored position in West Indies markets. It was the nearest U.S. port for the shipment of wheat from Pennsylvania farms, and it had strong connections to French and Spanish merchant houses operating in the Caribbean. Possibly investing the dowry of his wife, Daniels built a schooner and undertook commercial voyages for D’Arcy and Didier to Haiti and France.[41]

40. Daniels was not especially successful as a wartime privateer. On his first outings, he captained two vessels that were seized by British ships and captured only a handful of small vessels. A fourth cruise yielded valuable prizes, but Daniels ran aground in the waters off Cape May, once unintentionally and once inten-

41. 1812年战争之前，丹尼尔斯也曾替这家商行赴海地贸易。Hopkins, “For Flag and Profit〔题名译释：为了旗帜与利润〕,” 394. 丹尼尔斯的妻子原名 Eugenia Caze，1795 年生于圣多明各。她应是在 1793 年第一波圣多明各难民涌入之后的某个时候抵达巴尔的摩。当年，1,500 名难民从弗朗索瓦角乘五十三艘船来到该城，其中包括约 500 名黑人，既有自由人，也有被奴役者 (Hartridge, Walter Charlton, “The Refugees from the Island of St. Domingo in Maryland〔题名译释：马里兰州来自圣多明各岛的难民〕,” The Maryland Historical Magazine 38, 2 (1943): 103–122). 难民继续涌入，在港边费尔斯角街区形成一个法语社群。参见 Jones, Martha S., “The Case of Jean Baptiste, un Créole de Saint-Domingue: Narrating Slavery, Freedom, and the Haitian Revolution in Baltimore City〔题名译释：圣多明各克里奥尔人让 • 巴蒂斯特案：在巴尔的摩叙述奴隶制、自由与海地革命〕,” in Ward, Brian, Bone, Martin, and Link, William A., eds., The American South and the Atlantic World〔题名译释：美国南方与大西洋世界〕(Gainesville: University Press of Florida, 2013), 104–28.

[p. 11] 巴尔的摩商人希望重获西印度群岛贸易中的竞争优势，实际面对的却是盈利危机。和平时期，载货量更大的英国船只，进入了此前由较小的巴尔的摩纵帆船服务的市场。[42]利润受到挤压，促使丹尼尔斯等人四处寻找其他出路；有关南美洲共和国机会的消息，恰在此时传来。1817 年末，丹尼尔斯从巴尔的摩一家造船厂购入一艘新双桅混合帆船，准备将其用于一次长途私掠巡航。

42. Gary Lawson Browne, *Baltimore in the Nation, 1789–1861〔题名译释：国家中的巴尔的摩，1789—1861〕* (University of North Carolina Press, 1980), 第 4 章. 向南美洲港口大量输送货物的英国商人，也遭遇需求疲弱；从钢琴到桃花心木家具，各类消费品堆积在南美洲港口的码头与仓库中。D. C. M. Platt, *Latin America and the British Trade, 1806–1914〔题名译释：拉丁美洲与英国贸易，1806—1914〕* (London: Adam and Charles Black, 1972), 23–64.

[p. 11] 丹尼尔斯很清楚，必须把自己的劫掠辩护为合法行为；他开始建立文件记录，以便保住未来的战利品。在美国领土上接受南美洲政治体的私掠委任状，会违反美国的中立法。[43]其他巴尔的摩船长已经以各种方式掩盖行迹，持南美洲委任状展开私掠巡航；丹尼尔斯很可能从人脉和同业那里了解到这一机会。[44]他打算把新造的 *Vacunia* 号驶往拉普拉塔河，这可能是为了支持他在美国境外取得委任状的说辞。丹尼尔斯还采取了其他预防措施。他把船上大量轻武器藏在甲板下，并在 1818 年 3 月起航时，将特内里费列为航行目的地。船舶文件把约翰 • 考克斯列为船长；丹尼尔斯则与另外一些船员乘引航船，在距巴尔的摩港约 9 英里的白岩与该船会合——无疑是为了让自己能够有理由否认曾在美国港口策划私掠航行。[45]

43. 中立立法的措辞，随着国际地位未定的南美洲政治体的出现而改变。1794 年《中立法》禁止美国公民接受并执行委任，“在陆上或海上的战争中，为外国君主或国家服务”。1816 年 12 月，面对葡萄牙公使科雷亚 • 达塞拉的压力，麦

tionally, to avoid capture by British blockading vessels. Hopkins, “For Flag and Profit,” 392–401, 393–94. In contrast, another Baltimore captain who later turned South American privateer, Joseph Almeida, captured 30 vessels during the war and cleared $46,000 in profits. Head, “Independence on the Quarterdeck,” 7.

41. Daniels had also traded to Haiti for this firm before the War of 1812. Hopkins, “For Flag and Profit,” 394. Daniels’s wife was born as Eugenia Caze in St. Domingue in 1795. She would have arrived in Baltimore sometime after the first surge of refugees from St. Domingue in 1793, when 1,500 refugees, including about 500 Blacks (a mix of free and enslaved people), traveled to the city on fifty-three ships from Cap François (Hartridge, Walter Charlton, “The Refugees from the Island of St. Domingo in Maryland,” The Maryland Historical Magazine 38, 2 (1943): 103–122). The flow of refugees continued, and a community of French speakers formed in the portside neighborhood of Fell’s Point. See Jones, Martha S., “The Case of Jean Baptiste, un Créole de Saint-Domingue: Narrating Slavery, Freedom, and the Haitian Revolution in Baltimore City,” in Ward, Brian, Bone, Martin, and Link, William A., eds., The American South and the Atlantic World (Gainesville: University Press of Florida, 2013), 104–28.

[p. 11] Hopeful of regaining their competitive advantage in the West Indies trade, Baltimore merchants instead found themselves confronting a crisis of profitability. In peacetime, larger-capacity British ships were moving into markets previously served by the smaller Baltimore schooners.[42] The pinch on profits sent Daniels and others casting around for alternatives, and news of opportunities in the South American republics arrived on cue. In late 1817, Daniels purchased a new brigantine from a Baltimore shipyard and prepared it for an extensive cruise as a privateer.

42. Gary Lawson Browne, *Baltimore in the Nation, 1789–1861* (University of North Carolina Press, 1980), chapter 4. British merchants flooding South American ports with goods were also encountering weak demand, as consumer goods, from pianos to mahogany furniture, sat on the docks and in warehouses of South American ports. D. C. M. Platt, *Latin America and the British Trade, 1806–1914* (London: Adam and Charles Black, 1972), 23–64.

[p. 11] Daniels was attentive to the need to defend his raiding as lawful, and he began to construct a paper trail that might secure future booty. To accept a privateering commission on U.S. soil from a South American polity would have been a violation of U.S. neutrality laws.[43] Hiding their tracks in various ways, other Baltimore captains had already embarked on privateering cruises with commissions from South America, and Daniels probably learned about the opportunity from his contacts and peers.[44] His plan to sail the newly built ship, the *Vacunia*, to the Río de la Plata may have been intended to support the fiction that he obtained his commission outside the United States. Daniels undertook other precautions, too. He stored the ship’s extensive cache of small arms below deck and listed Tenerife as the voyage destination when the vessel set sail in March 1818. The ship’s papers named John Cox as the captain, and Daniels—no doubt to give himself plausible deniability about planning a privateering voyage in a U.S. port—

迪逊总统支持修改立法。1817 年 3 月通过的修订法令，扩大了有关援助外国实体的表述，禁止为如下目的装备、武装船只："受雇为任何外国君主或国家，*或任何殖民地、地区或人民*服务"，对"与美国和平相处的*任何殖民地、地区或人民*"实施或协助敌对行动（着重号为本文作者所加）。1818 年 4 月的另一版本补充规定，禁令适用于"陆上或海上"的战争行为。Edward Dumbauld,"Neutrality Laws of the United States〔题名译释：美国的中立法〕,"*The American Journal of International Law* 31, 2 (1937): 258–70; and Arlyck, *The Nation at Sea〔题名译释：海上的国家〕*, 94–95, 204–5.

44. 例如，约瑟夫•阿尔梅达与詹姆斯•切托已从巴尔的摩展开私掠巡航 (David Head,"Independence on the Quarterdeck〔题名译释：后甲板上的独立〕."）

45. Samuel Beaver 与 Lawrence Madison 的证词，US v. La Irresistible，美国马里兰地区巡回法院上诉案件档案（以下简称 USCC Maryland），美国国家档案与文件管理局费城馆（以下简称 NARA Philadelphia）。Bernabeu v. Nereyda，美国马里兰地区法院海事案卷及案件档案（以下简称 AD USDC Maryland），NARA Philadelphia。

[p. 12] 出海后，丹尼尔斯命人把武器搬上来，并装好火炮。[46]随后，*Vacunia* 号在三周内航行 5,000 英里，直抵布宜诺斯艾利斯，途中未停靠其他港口。丹尼尔斯何时、如何取得阿蒂加斯的委任状，仍是谜；他离开巴尔的摩时，可能已经持有它。[47]我们知道，在布宜诺斯艾利斯，丹尼尔斯上岸取得了联合省政府的委任状。为进一步支持其后续捕获合法的主张，他登记了 *Vacunia* 号的一次出售和回购，将其改名为 *Maipú* 号，并归化为联合省公民。[48]随后，丹尼尔斯解除船员的雇佣关系，再重新雇用他们；少数人选择留在岸上或换船，而他又将二十人加入船员名册。当布宜诺斯艾利斯官员怀疑丹尼尔斯无意把捕获物带回该港时，便通知他将派海事观察员登船。丹尼尔斯当夜悄悄驶离港口。[49]

46. 据称，该船装备了"滑膛枪、手枪、短弯刀、登船长矛，以及十二门十八磅短身舰炮"（海军火炮），并载有"一批火药、弹丸和弹药"。Bernabeu v. Nereyda, AD USDC Maryland, NARA Philadelphia.

47. 美国法院文件对委任状颁发日期的说法彼此冲突。一位法官指出，阿蒂加斯委任状的日期为 1818 年 2 月 14 日，即丹尼尔斯离开巴尔的摩前一个月 (Bernabeu v. Nereyda, AD USDC Maryland, NARA Philadelphia). 丹尼尔斯的律师后来声称，委任状是阿蒂加斯于 1818 年 6 月 15 日在普里菲卡西翁颁发的 (J. D. Daniels v. Vasques, USCC Maryland, NARA Philadelphia). 在第三起案件中，葡萄牙领事确信地断言，丹尼尔斯从未持有这类委任状 (Swift v. J. D. Daniels, AD USDC Maryland, NARA Philadelphia). 没有证据表明，丹尼尔斯曾在美国法院出示过该委任状。

48. 关于这一时期公民身份的流动性，参见 Pilar González

traveled with additional crew members on a pilot boat to meet the ship at the White Rocks, about 9 miles outside Baltimore harbor.[45]

43. The language of neutrality legislation changed in response to the emergence of South American polities of uncertain international standing. The Neutrality Act of 1794 had prohibited U.S. citizens from accepting and exercising commissions to "serve a foreign prince or state in war by land or sea." In response to pressure from the Portuguese minister Corrêa da Serra in December 1816, President Madison endorsed a change to legislation. The revised act passed in March 1817 broadened this language about aid to foreign entities, prohibiting acts to fit out and arm vessels with the intent to "be employed in the service of any foreign prince or state, *or of any colony, district or people*" to commit or aid in hostilities against "*any colony, district or people*, with whom the United States are at peace" (emphasis added). In April 1818, another version added that the ban applied to warlike actions "by land or sea." Edward Dumbauld,"Neutrality Laws of the United States," *The American Journal of International Law* 31, 2 (1937): 258–70; and Arlyck, *The Nation at Sea*, 94–95, 204–5.

44. For example, Joseph Almeida and James Chaytor had already launched privateering cruises from Baltimore (David Head,"Independence on the Quarterdeck.")

45. Depositions of Samuel Beaver and Lawrence Madison, US v. La Irresistible, Appellate Case Files U.S Circuit Court for the District of Maryland (hereafter USCC Maryland), National Archives and Records Administration at Philadelphia (hereafter NARA Philadelphia). Bernabeu v. Nereyda, Admiralty Dockets and Case Files of the U.S. District Court for the District of Maryland (hereafter AD USDC Maryland), NARA Philadelphia.

[p. 12] Once at sea, Daniels had the arms brought up and the guns mounted.[46] The *Vacunia* then sprinted, on a three-week, 5,000-mile voyage, to Buenos Aires without calling at another port. When and how Daniels obtained the Artigas commission is a mystery, and it is possible that he already possessed it when he sailed from Baltimore.[47] We know that in Buenos Aires, Daniels went ashore to obtain a commission from the government of the United Provinces. As further steps to support his claim that the subsequent captures were lawful, he recorded a sale and re-purchase of the *Vacunia* and changed its name to the *Maipú*, and became a naturalized citizen of the United Provinces.[48] Daniels then released and rehired his crew, except for a few men who chose to stay ashore or change ships, and he added another twenty men to the ship's roster. When officials in Buenos Aires became suspicious that Daniels had no intention of bringing prizes back to Buenos Aires, they informed him that they would send marine observers on board. Daniels slipped out of the harbor that night.[49]

46. The vessel was said to be armed with "muskets, pistols, cutlasses, and boarding pikes, and also twelve eighteen pound gunnades" (naval artillery), as well as "a quantity of powder, ball and ammunition." Bernabeu v. Nereyda, AD USDC Maryland, NARA Philadelphia.

47. U.S. court documents contain conflicting claims about the date the commission was issued. One judge stated that the commission from Artigas was dated 14 February 1818—a month before Daniels left Baltimore (Bernabeu v. Nereyda, AD USDC Maryland, NARA Philadelphia). Daniels's lawyer later claimed

Bernaldo de Quirós, *Argentina hasta la muerte. Políticas de nacionalidad y prácticas de naturalización, siglo XIX-XX*〔题名译释：至死为阿根廷人：十九至二十世纪的国籍政策与归化实践〕(Buenos Aires: Fondo de Cultura Económica, 2025), 第 1 章; Mongey, Vanessa, Rogue Revolutionaries: The Fight for Legitimacy in the Greater Caribbean〔题名译释：不受约束的革命者：大加勒比地区争取合法性的斗争〕(Philadelphia: University of Pennsylvania Press, 2020) DOI: 10.9783/9780812297577, 71; and Emily A. Yankowitz, "Who Is a Citizen?: Negotiating American Citizenship Before The Fourteenth Amendment〔题名译释：谁是公民？第十四修正案之前美国公民身份的协商〕" (PhD diss., Yale University, 2025). 关于自由黑人被排除于公民身份之外，参见 Jones, Martha, Birthright Citizens: A History of Race and Rights in Antebellum America〔题名译释：生而为公民：内战前美国的种族与权利史〕(Cambridge: Cambridge University Press, 2025).

49. Swift v. J. D. Daniels, AD USDC Maryland, NARA Philadelphia.

[p. 12] 再次出海后，丹尼尔斯将船改名为 *La Irresistible*，即*"不可抗拒号"*。他召集船员，宣布自己拥有两份委任状——一份来自联合省，一份来自东方共和国——并打算同时凭借两份委任状劫掠。后来一名船员作证说，丹尼尔斯向船员展示过联合省的委任状，但没有人记得见过阿蒂加斯的委任状。丹尼尔斯肯定知道，捕获法庭不会认可持两份委任状航行；或许因此，他决定放弃联合省的那份委任状，通过一艘过往船只将它送回布宜诺斯艾利斯。在布宜诺斯艾利斯，官员没收了一名美国商人为丹尼尔斯船只缴纳的保证金，并宣布丹尼尔斯为海盗。[50]

50. Samuel Beaver 与 Lawrence Madison 的证词, US v. La Irresistible, USCC Maryland, NARA Philadelphia. 据报道，*Maipú* 号的保证金由 William Ford 缴纳；丹尼尔斯放弃布宜诺斯艾利斯委任状时，应由他承担损失。当地官员采取不寻常的措施，宣布丹尼尔斯为海盗，因为他保留了部分私掠文件 (*Gaceta de Buenos Aires* No. 78, 8 julio 1818).

[p. 13] 接下来七周，*"不可抗拒号"*捕获了二十六艘船。[51]除一艘外，其余都悬挂葡萄牙旗帜，往来于连接巴西与里斯本的繁忙航道。多数情况下，船员抢走货物，然后将船凿沉。[52]最丰厚的捕获物，来自葡萄牙大西洋贸易利润最高的两个部分。其中一艘是 *Globo* 号，一艘悬挂葡萄牙旗帜、从孟买驶往里斯本的商船，载有棉花、茶叶、生姜、肉桂、硝石及其他香料。"不可抗拒号"夺走了货物，葡萄牙驻巴尔的摩领事后来估其价值为 90,000 美元；并把估值 30,000 美元的船只送往南卡罗来纳州查尔斯顿，推测是为了出售。[53]另一宗更丰厚的捕获，是名为 *Grão Para* 号的葡萄牙船（后来在美国法院中被称为 *Gran Para* 号），当时正从里约热内卢驶往里斯本。船上载着"五十袋白银、十袋金银，以及五袋黄金"，价值约 300,000 美元。[54]丹尼尔斯相信自己的私掠委任状足以保护他

that the commission was issued by Artigas at Purificación on 15 June 1818 (J. D. Daniels v. Vasques, USCC Maryland, NARA Philadelphia). In a third case, the Portuguese consul confidently asserted that Daniels had never possessed such a commission (Swift v. J. D. Daniels, AD USDC Maryland, NARA Philadelphia). There is no evidence that Daniels ever presented the commission before U.S. courts.

48. On the fluidity of citizenship in the period, see Pilar González Bernaldo de Quirós, *Argentina hasta la muerte. Políticas de nacionalidad y prácticas de naturalización, siglo XIX-XX* (Buenos Aires: Fondo de Cultura Económica, 2025), chapter 1; Mongey, Vanessa, Rogue Revolutionaries: The Fight for Legitimacy in the Greater Caribbean (Philadelphia: University of Pennsylvania Press, 2020) DOI: 10.9783/9780812297577, 71; and Emily A. Yankowitz, "Who Is a Citizen?: Negotiating American Citizenship Before The Fourteenth Amendment" (PhD diss., Yale University, 2025). On the exclusion of Free Blacks from citizenship, see Jones, Martha, Birthright Citizens: A History of Race and Rights in Antebellum America (Cambridge: Cambridge University Press, 2025).

49. Swift v. J. D. Daniels, AD USDC Maryland, NARA Philadelphia.

[p. 12] Again at sea, Daniels renamed the ship *La Irresistible*, or the *Irresistible.* He gathered the crew and announced that he possessed two commissions—one from the United Provinces and another from the Oriental Republic—and that he intended to raid under both. A crew member later testified that Daniels showed the crew the commission from the United Provinces, but no one remembered seeing the Artigas commission. Daniels surely knew that prize courts would not approve sailing under two commissions, and perhaps for that reason he decided to abandon the commission from the United Provinces. He sent it back to Buenos Aires by way of a passing ship. In Buenos Aires, officials confiscated the deposit filed for Daniels' s ship by a U.S. merchant and declared Daniels to be a pirate.[50]

50. Depositions of Samuel Beaver and Lawrence Madison, US v. La Irresistible, USCC Maryland, NARA Philadelphia. The deposit for the *Maipú* was reportedly paid by William Ford, who would have incurred the loss when Daniels abandoned his Buenos Aires commission. Officials there took the unusual measure of declaring Daniels a pirate because he retained some of the privateering documents (*Gaceta de Buenos Aires* No. 78, 8 julio 1818).

[p. 13] In the next seven weeks, the *Irresistible* seized twenty-six ships.[51] All but one were sailing under Portuguese colors and plying the busy sea lanes connecting Brazil to Lisbon. In most cases, the crew plundered the cargo and sank the vessels.[52] The richest prizes came from the two most profitable segments of Portuguese Atlantic commerce. One was the *Globo*, a Portuguese-flagged merchant vessel sailing from Bombay to Lisbon with a cargo of cotton, tea, ginger, cinnamon, saltpeter, and other spices. The *Irresistible* seized the cargo, later valued at $90,000 by the Portuguese consul in Baltimore, and sent the ship, valued at $30,000, to Charleston, South Carolina, presumably to be sold.[53] A second, even richer capture was of a Portuguese vessel called the *Grão Para* (later referred to in U.S. courts as the *Gran Para*), on a voyage from Rio

免受法律挑战，便返乡将自己分得的财宝存入巴尔的摩海事银行。但他低估了自己离开这几个月间，美国的政治风向对他不利的转变有多么迅速而坚决。

51. 某些资料记载数量为 29 艘 (Gazeta da Lisboa, 27 octubre 1818).

52. 西班牙船 *Flor de Santa Catalina* 号，由一小队船员送往玛格丽塔岛胡安格列戈的捕获法庭。Beraza, *Corsarios de Artigas*〔*题名译释：阿蒂加斯的私掠者*〕, 113.

53. Swift v. J. D. Daniels, AD USDC Maryland, NARA Philadelphia.

54. 估值来自葡萄牙领事的诉状 (J. D. Daniels v. Vasques, USCC Maryland, NARA Philadelphia). 部分或全部财宝，可能是出售被运至里约热内卢的被奴役非洲人所得货款。英国试图通过签订双边条约禁止奴隶贸易，却允许葡萄牙人在赤道以南继续这一贸易，给废奴制度留下巨大漏洞。Benton and Ford, *Rage for Order*〔*题名译释：对秩序的狂热*〕, 第 5 章; 另参 Richards, Jake Subryan, The Bonds of Freedom: Liberated Africans and the End of the Slave Trade〔题名译释：自由的纽带：获释非洲人与奴隶贸易的终结〕(New Haven: Yale University Press, 2025), 第 6 章.

de Janeiro to Lisbon. The ship was carrying "Fifty Bags of Silver, Ten Bags of Gold and Silver, [and] Five Bags of Gold" valued at about $300,000.[54] Confident that his privateering commission would protect him from legal challenges, Daniels returned home and placed his share of the captured treasure in the Marine Bank of Baltimore. But he was underestimating how quickly and decisively the political winds in the United States had shifted against him during his months away.

51. Some sources list the number as 29 (Gazeta da Lisboa, 27 octubre 1818).

52. The Spanish vessel *Flor de Santa Catalina* was sent with a small crew to the prize court at Juan Griego on the Island of Margarita. Beraza, *Corsarios de Artigas*, 113.

53. Swift v. J. D. Daniels, AD USDC Maryland, NARA Philadelphia.

54. The estimates are from the Portuguese consul's libel (J. D. Daniels v. Vasques, USCC Maryland, NARA Philadelphia). It is possible that some or all of the treasure was payment for the sale of enslaved Africans carried to Rio de Janeiro. British efforts to prohibit the slave trade by signing bilateral treaties had left a gaping hole in the abolition regime by allowing the trade to continue in Portuguese hands south of the equator. Benton and Ford, *Rage for Order*, chapter 5; see also Richards, Jake Subryan, The Bonds of Freedom: Liberated Africans and the End of the Slave Trade (New Haven: Yale University Press, 2025), chapter 6.

友好的法庭与不友好的法庭 / Friendly and Unfriendly Courts

[p. 13] 美国政府对那些为南美洲政治体实施劫掠的本国公民的支持，正在迅速消退。官员面对着伊比利亚两国大使的强力游说，以及外国领事迅速增多的诉讼。[55]政府也正与西班牙就取得佛罗里达及后来构成《亚当斯—奥尼斯条约》的其他条款展开谈判；安抚西班牙，此时已成为国务卿约翰·昆西·亚当斯的重要优先事项。丹尼尔斯最初应对这些危险的方式，是迅速准备让*"不可抗拒号"*再度出海私掠。

55. 关于外国领事及其在诉讼中作用的精彩分析，参见 Arlyck, Kevin, "Plaintiffs v. Privateers: Litigation and Foreign Affairs in the Federal Courts, 1816–1822〔题名译释：原告诉私掠者：联邦法院中的诉讼与外交，1816—1822〕," Law and History Review 30, 1 (2012): 245–78 DOI: 10.1017/S0738248011000666.

[p. 13] 在第二次巡航中，丹尼尔斯又捕获数十艘船。其中包括葡萄牙贩奴船 *Paquete do Maranhão* 号，以及装备十六门火炮的西班牙双桅横帆军舰 *Nereyda* 号。丹尼尔斯意识到这艘军舰价值不菲，决定将其送往捕获法庭，取得合法捕获物的裁定。他最初希望在圣托马斯迅速获得判决，却遭当地官员拒绝。随后，*"不可抗拒号"*伴随由丹尼尔斯部下组成的接管船员驾驶的 *Nereyda* 号，驶往玛格丽塔岛的胡安格列戈；那里的友好捕获法庭会承认他的阿蒂加斯委任状，并把船判给作为合法捕获者的他。[56]

[p. 13] U.S. government backing for citizens engaged in raiding for South American polities was fast eroding. Officials were facing intense lobbying by Iberian ambassadors and rapidly escalating litigation by foreign consuls.[55] The government was also immersed in negotiations with the Spanish government over the acquisition of Florida and other terms of what would become the Adams-Onís Treaty, and placating Spain was now a high priority for Secretary of State John Quincy Adams. Initially, Daniels responded to these dangers by quickly preparing the *Irresistible* for another privateering voyage.

55. For an excellent analysis of foreign consuls and their role in litigation, see Arlyck, Kevin, "Plaintiffs v. Privateers: Litigation and Foreign Affairs in the Federal Courts, 1816–1822," Law and History Review 30, 1 (2012): 245–78 DOI: 10.1017/S0738248011000666.

[p. 13] In his second cruise, Daniels seized several dozen more ships. They included the *Paquete do Maranhão*, a Portuguese slave ship, and a sixteen-gun Spanish warship, the brig *Nereyda.* Daniels recognized that the ship was valuable, and he decided to take it to a prize court to have it declared good prize. He first sought a quick ruling in St. Thomas but was rebuffed by officials there. The *Irresistible* then accompanied the *Nereyda*, with a prize crew made up of Daniels's men, to Juan Griego on the island of Margarita, where the friendly prize court would recognize his Artigas commission and award the ship to him as lawful captor.[56]

56. La Nereyda, 21 U.S. 108 (1823); Beraza, *Corsarios de Artigas〔题名译释：阿蒂加斯的私掠者〕*, 115.

[p. 14] 胡安格列戈法庭，是从该地区海上劫掠激增中获利的少数加勒比捕获法庭之一。大哥伦比亚的官员设立这一审判机构，以裁决为新政府航行的私掠者所取得的捕获物；法庭很快便表明，它也向持有其他拉丁美洲国家委任状的船长开放。[57]法庭迅速作出处理后，丹尼尔斯与密切合作者亨利·查尔兹合谋，安排将该船出售给名为安东尼奥·胡利奥·弗兰切斯基的委内瑞拉公民；这很可能是一笔虚假交易。*Nereyda* 号被重新命名为 *Congreso de Venezuela* 号；在查尔兹和丹尼尔斯幕后操作下，新船主取得委任状，以私掠船身份为西蒙·玻利瓦尔的革命政府航行。

57. 若干隶属中立帝国的加勒比岛屿——圣巴泰勒米（瑞典）、圣尤斯特歇斯（荷兰）与圣托马斯（丹麦）——设有捕获法庭，并欢迎南美洲私掠者，尽管态度并不始终一致。Mulich, Jeppe, “Prize court politics and regional ordering in the Caribbean〔题名译释：加勒比海的捕获法庭政治与区域秩序形成〕,” Past & Present, 265, 17 (2024): 193–213 10.1093/pastj/gtae027. 关于从委内瑞拉出发的私掠，参见 Morales, Edgardo Pérez, No Limits to Their Sway: Cartagena’s Privateers and the Masterless Caribbean in the Age of Revolutions〔题名译释：他们的势力无边：革命时代卡塔赫纳的私掠者与无主的加勒比海〕(University of Vanderbilt Press, 2018) DOI: 10.2307/j.ctv16757xb; and Mongey, *Rogue Revolutionaries〔题名译释：不受约束的革命者〕*.

[p. 14] 随后，一场哗变打乱了丹尼尔斯的计划。*“不可抗拒号”*当时停泊于胡安格列戈港，另一艘来自巴尔的摩的私掠船 *Creola* 号，持布宜诺斯艾利斯的委任状，带着自己的捕获物进入港口。两船船员混在一起，显然在 *Creola* 号船员带头下，决定驶船返乡。哗变者允许“不可抗拒号”上的十九人上岸，其中包括亨利·查尔兹。一些留下的人后来声称，他们是在胁迫之下留下的。合流后的船员翻遍“不可抗拒号”的文件，寻找委任状，却一无所获，于是决定在没有法律掩护的情况下实施捕获。在前往切萨皮克的途中，他们登上并洗劫了约三十艘船。与丹尼尔斯一样，这些人返乡时发现，自己进入了一种对有意从事私掠者极端敌视的政治氛围。与丹尼尔斯不同的是，他们无法声称持有委任状，也无法在法庭上主张其捕获是合法战争行为。官员将船员搜捕归案，分批在巴尔的摩和里士满以海盗罪审判。[58]

58. *Niles Weekly Register*, 7 August 1819, 390–95.

[p. 14] 即便这场灾难，丹尼尔斯也设法加以利用。胡安格列戈哗变之后，他征用了 *Congreso de Venezuela* 号，即改名后的 *Nereyda* 号，追赶 *“不可抗拒号”*和哗变者。抵达巴尔的摩后，他得知“不可抗拒号”停在诺丁汉，许多哗变者已在里士满被捕。丹尼尔斯前往取船，港口官员爽快地把船交还给他。他再次拥有了“不可抗拒号”，如今还指挥着改名后的 *Nereyda* 号。然而，丹尼尔斯的地位从未如此不稳固，他发现自己急需一名律师。

56. La Nereyda, 21 U.S. 108 (1823); Beraza, *Corsarios de Artigas*, 115.

[p. 14] The court at Juan Griego was one of a handful of Caribbean prize courts profiting from the surge in the region’s maritime raiding. Officials in Gran Colombia had created the forum to rule on captures made by privateers sailing for the new government, and the court quickly signaled that its doors were open to captains with commissions from other Latin American states.[57] Following swift action by the court, Daniels conspired with his close associate Henry Childs to arrange what was likely a sham sale of the vessel to a Venezuelan citizen named Antonio Julio Franceschi. The *Nereyda* was rechristened the *Congreso de Venezuela*, and the new owner—with Childs and Daniels acting in the background—secured a commission to sail as a privateer for the revolutionary government of Simón Bolívar.

57. Several Caribbean islands under neutral empires—St. Bartholomew (Sweden), St. Eustatius (the Netherlands), and St. Thomas (Denmark)—housed prize courts and welcomed, though inconsistently, South American privateers. Mulich, Jeppe, “Prize court politics and regional ordering in the Caribbean,” Past & Present, 265, 17 (2024): 193–213 10.1093/pastj/gtae027. On privateering from Venezuela, see Morales, Edgardo Pérez, No Limits to Their Sway: Cartagena’s Privateers and the Masterless Caribbean in the Age of Revolutions (University of Vanderbilt Press, 2018) DOI: 10.2307/j.ctv16757xb; and Mongey, *Rogue Revolutionaries.*

[p. 14] A mutiny then disrupted Daniels’s plans. The *Irresistible* was anchored in the harbor at Juan Griego when another Baltimore privateering vessel, the *Creola*, sailing with a commission from Buenos Aires, entered the harbor with captures of its own. The crews mingled, and with men of the *Creola* apparently in the lead, they decided to sail for home. The mutineers permitted nineteen men from the *Irresistible*, including Henry Childs, to go ashore. Some of those who remained would later claim they did so under duress. After rifling through the papers on the *Irresistible* in search of a commission and finding none, the merged crew decided to make captures without legal cover. On the way to the Chesapeake, they boarded and ransacked about thirty vessels. Like Daniels, the men discovered on their return that they were entering a political atmosphere that had turned sharply hostile to would-be privateers. Unlike Daniels, they had no claim of a commission and would not be able to argue in court that their captures were lawful acts of war. Officials rounded up crew members and put separate groups on trial for piracy in Baltimore and Richmond.[58]

58. *Niles Weekly Register*, 7 August 1819, 390–95.

[p. 14] Daniels managed to take advantage even of this calamity. After the mutiny at Juan Griego, he commandeered the *Congreso de Venezuela* (the renamed *Nereyda*) in pursuit of the *Irresistible* and the mutineers. Arriving in Baltimore, he learned that the *Irresistible* was docked in Nottingham and that many of the mutineers were under arrest in Richmond. Daniels traveled to retrieve the ship, and port officials readily gave it to him. Once again, he found himself in possession of the *Irresistible*, and now he also

[p. 14] 他正面对三项要求追回被捕船只及货物的诉请，这类诉状称为 libels。葡萄牙驻美国领事若阿金 • 若泽 • 瓦斯克斯，起诉要求归还 *Gran Para* 号的财宝。葡萄牙驻马里兰州领事威廉 • 斯威夫特，代表葡萄牙王室提交诉状，要求追回*“不可抗拒号”*第一次巡航中，从 *Globo* 号及另外二十五艘船上夺取的货物价值。西班牙驻巴尔的摩领事胡安 • 包蒂斯塔 • 贝尔纳贝乌，则要求丹尼尔斯向西班牙政府归还 *Nereyda* 号。这些案件由马里兰州法官西奥多里克 • 布兰德审理；他以支持南美洲革命闻名，一度还被怀疑参与私掠。[59]这些案件围绕国家、战争和海盗行为的定义引发辩论，使正在形成的大西洋体系不断变化的轮廓凸显出来。

59. 据传，布兰德曾是 American Concern 的成员；这是一个 1816 年在巴尔的摩成立、组织南美洲私掠事业的隐秘团体。丹尼尔斯的雇主、商人 John D’Arcy 和 Henry Didier，也是成员 (Charles C. Griffin,“Privateering from Baltimore during the Spanish American Wars of Independence〔题名译释：西属美洲独立战争期间从巴尔的摩出发的私掠〕,”*Maryland Historical Magazine*, XXXV, 1940, 1–25, 3; Harold A. Bierck,“Spoils, Soils, and Skinner〔题名译释：战利品、土地与斯金纳〕,”*Maryland Historical Magazine* XLIX, 1954, 21–40, 28). 布兰德曾参加总统派往智利和布宜诺斯艾利斯的特别委员会；该委员会于 1817 年出发，负责报告南美洲政治局势。布兰德因独自前往智利圣地亚哥而受到批评，他意在争取智利新政府承诺，承担雄心勃勃的智利革命者何塞 • 米格尔 • 卡雷拉欠布兰德女婿、巴尔的摩邮政局长约翰 • 斯图尔特 • 斯金纳的债务。布兰德在报告中批评联合省政府，并对脱离出去的东岸地区和恩特雷里奥斯诸省表达了一定同情 (Stewart Watt,“The South American Commission, 1817–1818〔题名译释：南美洲委员会，1817—1818〕,”*Hispanic American Historical Review* 9, 1 [February 1929]: 31–59).

had command of the rechristened *Nereyda.* Yet Daniels’s position had never been less secure, and he found himself badly in need of a lawyer.

[p. 14] He was facing three claims, called libels, to recover captured ships and cargo. The Portuguese consul to the United States, Joaquim José Vasques, had sued for the return of the treasure of the *Gran Para.* The Portuguese consul in Maryland, William Swift, presented a libel on behalf of the Portuguese crown to recover the value of goods seized from the *Globo* and twenty-five other vessels on the first cruise of the *Irresistible.* And the Spanish consul in Baltimore, Juan Bautista Bernabeu, demanded that Daniels return the *Nereyda* to the Spanish government. The cases appeared before Theodorick Bland, a Maryland judge known for his support of South American revolutions and at one time suspected of involvement in privateering.[59] The cases would spotlight the shifting contours of the emerging Atlantic system by generating debates over the definition of states, war, and piracy.

59. Bland was rumored to have been a member of the American Concern, a shadowy group that formed in Baltimore in 1816 to organize South American privateering ventures. Daniels’s employers, the merchants John D’Arcy and Henry Didier, were also members (Charles C. Griffin,“Privateering from Baltimore during the Spanish American Wars of Independence,”*Maryland Historical Magazine*, XXXV, 1940, 1–25, 3; Harold A. Bierck,“Spoils, Soils, and Skinner,”*Maryland Historical Magazine* XLIX, 1954, 21–40, 28). Bland had served on the president’s Special Commission to Chile and Buenos Aires, dispatched in 1817 to report on the political situation in South America. Bland drew criticism for traveling on his own to Santiago, Chile, in pursuit of a promise from the new Chilean government to assume the debt of an ambitious Chilean revolutionary, José Miguel Carrera, to Bland’s son-in-law, John Stuart Skinner, the Baltimore postmaster. In his report, Bland criticized the government of the United Provinces and expressed some sympathy with the breakaway provinces of the Banda Oriental and Entre Ríos (Stewart Watt,“The South American Commission, 1817–1818,”*Hispanic American Historical Review* 9, 1 [February 1929]: 31–59).

什么是国家？/ What is a State?

[p. 15] 围绕捕获 *Gran Para* 号的争议，在一个层面上十分直接。案件最终取决于这样一个问题：丹尼尔斯在巴尔的摩将船只装备为战船，是否违反了美国中立法。[60]作为地区法院法官，布兰德表示，他不相信丹尼尔斯的说法，即该船在拉普拉塔河取得私掠委任状之前，一直从事商业航行。布兰德认定，该船在巴尔的摩就已为战争作好准备，因此判令丹尼尔斯归还从 *Gran Para* 号取得的丰厚战利品。他的判决，在马里兰巡回法院上诉审中获得维持。案件随后提交美国最高法院，首席大法官约翰 • 马歇尔同样表示确信：“根本没有商业航行。”马歇尔认为，即使船员未正式签约参加劫掠远征，“他们看到的每一件事，所做的每一件事，都表达着明白到不可能误解的意思”。丹尼尔斯在美国港口组织了一次海盗航行，而拉普拉塔河发生的任何事情，都未消除这一污点。[61]

60. The Gran Para, 20 U.S. 471 (1822).

[p. 15] The dispute over the capture of the *Gran Para* was on one level straightforward. The case ultimately turned on the question of whether Daniels had violated U.S. neutrality laws by fitting out the ship for war in Baltimore.[60] As judge in the district court, Bland declared himself unconvinced by Daniels’s claim that the ship had been on a commercial voyage before obtaining a privateering commission in the Río de la Plata. The ship had been prepared for war in Baltimore, Bland found, ruling that Daniels had to return the rich booty from the *Gran Para.* His judgment was affirmed on appeal in the circuit court of Maryland. The case next reached the U.S. Supreme Court, where Chief Justice John Marshall pronounced himself certain, too, that“there was no commercial voyage.”Even if the crew had not been formally contracted to join a raiding expedition, Marshall concluded,“Every thing they saw,

61. 同上, 488.

[p. 15] *Gran Para* 号案还引发了有关南美洲政府主权的广泛辩论。代表葡萄牙王室出庭的戴维 • 霍夫曼主张，丹尼尔斯不可能是在以私掠者身份行动，因为“东岸地区并非具有主权属性的国家或民族国家”。美国政府也未“承认阿蒂加斯正与西班牙进行内战，或与葡萄牙进行任何形式的战争”。霍夫曼更进一步提出，承认阿蒂加斯为国家元首，会扰乱整个地区：“如果阿蒂加斯及其卑劣而野蛮的追随者，被承认为有资格发动*战争*，那么每一个乡镇、地区、城市、村庄、小聚落，乃至个人，都可以主张同样的崇高特权。”霍夫曼还主张，东岸地区不可能是国家，因为它在外观和行为上都不像国家。国家必须拥有“固定的*领土*、*国库*、*国家武装*、*法典*”；要在海上作战，还必须拥有海港。霍夫曼断言，即使阿蒂加斯以国家元首的方式治理，他仍然只是“一群乌合之众”的首领。[62]

62. 同上, 478. 着重号为原文所有。

[p. 16] 美国政府可能已经表明东方共和国具有主权，这一可能性始终隐伏于争论背后。霍夫曼承认，门罗在 1818 年 11 月 17 日第二次向国会发表咨文时曾说：“看来……布宜诺斯艾利斯政府已于 1816 年 7 月宣布独立……而东岸地区、恩特雷里奥斯和巴拉圭，以及圣菲市，都*同样已经独立*，与目前的布宜诺斯艾利斯政府没有联系。”[63] 霍夫曼无法忽视门罗的表述，但他提出，总统只是承认了东岸地区主权的某些方面，而非“主权的崇高特权”。[64]

63. 同上, 479. 着重号为原文所有。注意，门罗加入了“看来”这一限定语。

64. 同上, 480.

[p. 16] 这一论证的关键，是原殖民地仅拥有有限的战争能力。霍夫曼推论，一个被其他政府承认为“正为争取独立而进行内战”的殖民地，只能对抗“母国及其盟友”，不能“与其他国家发动另一场独立的战争”。按照这一逻辑，东岸地区并非与其他国家并列的国家，因为美国只给予它“有限而部分”的承认。法院无法补救这一局面，因为它没有权力“宣布一个人民*不构成*国家……或宣布他们*是*一个国家”。[65]

65. 同上, 482. 着重号为原文所有。只有行政当局能够作出这一认定，正如法院在下列案件中的判决：United States v. Palmer, 16 U.S. 610 (1818).

every thing that was done, spoke a language too plain to be misunderstood.” Daniels had organized—in a port in the United States—a piratical voyage, and nothing that occurred in the Río de la Plata had removed that taint.[61]

60. The Gran Para, 20 U.S. 471 (1822).

61. Ibid., 488.

[p. 15] The *Gran Para* case also prompted wide-ranging debates about the sovereignty of South American governments. Appearing for the Portuguese crown, David Hoffman argued that Daniels could not have been acting as a privateer because “the Banda Oriental is not a state or nation invested with the attributes of sovereignty.” Nor had the U.S. government “recognized Artigas as engaged in a civil war with Spain, or in a war of any kind with Portugal.” Going still further, Hoffman proposed that recognizing Artigas as a head of state would disrupt the entire region: “If Artigas, and his wretched and savage followers be recognized as qualified to wage *war*, then may every township, district, city, village, hamlet, or individual, claim the same high prerogatives.” The Banda Oriental also could not be a state, Hoffman argued, because it did not look or act the part. A state had to possess a “fixed *domain*, a *national treasury*, a *national force*, a *code of laws*,” and to make war by sea it needed to have seaports. Hoffman asserted that even if Artigas governed as if he were a head of state, he would remain the leader of only a “horde of men.” [62]

62. Ibid., 478. Emphasis in original.

[p. 16] The possibility that the U.S. government might have already indicated that the Oriental Republic was sovereign lurked in the background. Hoffman acknowledged that in Monroe’s second address to Congress on 17 November 1818, the president had stated, “It appears …that the government of Buenos Ayres declared itself independent in July, 1816 …[and] that the Banda Oriental, Entre Rios, and Paraguay, with the city of Santa Fe, all of which *are also independent*, are unconnected with the present government of Buenos Ayres.” [63] Hoffman could not ignore Monroe’s statement. But he suggested that the president had recognized only some aspects of sovereignty in the Banda Oriental and not “the high privileges of sovereignty.” [64]

63. Ibid., 479. Emphasis in original. Note Monroe’s insertion of the qualifier “It appears.”

64. Ibid., 480.

[p. 16] The crux of this argument was that former colonies possessed only a limited capacity to make war. Hoffman reasoned that a colony recognized by other governments as “engaged in a civil war for the assertion of its independence” might oppose only “the parent country and its allies.” It could not “wage a distinct, and independent war with other nations.” Under this logic, the Banda Oriental was something other than a state among states, having been awarded only “limited and partial” recognition by the United States. The courts could not remedy this situation because they lacked the authority “to declare that a people *do not constitute* a state …[or] that they *are*

[p. 16] 作为回应，丹尼尔斯的律师威廉•温德断言：“东岸地区是一个*事实上的*主权国家。”温德重申了他在 *Santissima Trinidad* 号案中提出的论证；该案取决于船只实施捕获前，是否曾在弗吉尼亚州诺福克非法扩充船员。在那个案件中，温德把颁发私掠委任状称为“最高层次的主权行为”，因而“尤其超出外国普通司法控制的范围”。交战国家依定义就是主权国家；其作战程度，不能被限制在中立法庭所允许的范围内。[66]

66. The Gran Para, 20 U.S. 471 (1822), 485; The Santissima Trinidad 7 Wheat. 283, 330.

[p. 16] 这些论证溢出了法庭。当涉及丹尼尔斯及其他船长的案件在司法体系中推进时，伊比利亚两国外交官正在向美国官员施压，要求采取更多措施，遏制从美国港口出发的私掠。毫不意外，他们的论点与由两国领事雇用、指挥的律师的论点彼此呼应。1819 年 3 月，葡萄牙大使若泽•科雷亚•达塞拉拜访约翰•昆西•亚当斯，要求政府宣布，所有乘持有阿蒂加斯委任状船只航行的船长和船员，都是海盗（亚当斯私下记下，大使使用的是“蹩脚的英语”）。大使紧盯着阿蒂加斯控制下没有海港这一点。科雷亚•达塞拉敦促亚当斯设想：如果私掠者“在特库姆塞的旗帜与委任状之下”袭击美国公民及其财产，他会作何反应？[67]几个月前，科雷亚•达塞拉已作过类似抱怨，怒斥“阿蒂加斯颁发的私掠委任状纯属荒谬”，其效力与“塞米诺尔印第安人”颁发的委任状相同。[68]

67. John Quincy Adams, 1819 年 3 月 19 日日记, *The John Quincy Adams Digital Diary〔题名译释：约翰•昆西•亚当斯数字日记〕*. 网址：https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1819-03-p050--entry19.

68. John Quincy Adams, 1818 年 10 月 17 日日记, *The John Quincy Adams Digital Diary〔题名译释：约翰•昆西•亚当斯数字日记〕*. 网址：https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v30-1818-10-p405--entry17.

[p. 17] 尽管科雷亚•达塞拉作这些类比时，重点是阿蒂加斯无法使用海港，但与美洲原住民政治体的比较绝非随意。私掠纠纷中的辩护者提出“有限而部分的承认”和“*事实上的*国家地位”等说法，并争论原殖民地可以合法发动哪些战争，其实是在摸索如何把某些政治共同体置于一种介于其间、尚未确定的地位。还要过十五年，首席大法官马歇尔才会把美洲原住民政治体称为“国内依附民族”。[69] 当时，远没有一套固定词汇，可以用来描述准主权、主权的不确定性或未获完整承认的国家。这些含混使南美洲政府陷入两难：颁发私掠委任状，一方面是在主张主权者发动战争的权利，另一方面也使自己暴露于支持海盗的指控之下。

a state.”[65]

65. Ibid., 482. Emphasis in original. Only the executive could make this determination, as the court decided in United States v. Palmer, 16 U.S. 610 (1818).

[p. 16] In reply, Daniels’s attorney, William Winder, asserted that “the Banda Oriental was a sovereign state *de facto.*” Winder was echoing arguments he had made in the case of the *Santissima Trinidad*, a case that turned on whether a ship’s crew had been augmented illegally in Norfolk, Virginia, before making captures. In that case, Winder had described the act of issuing privateering commissions as “the very highest act of sovereignty” and therefore “peculiarly above ordinary judicial control in foreign countries.” A state at war was by definition a sovereign state; it could not be restricted to making war only to the degree that neutral tribunals would permit.[66]

66. The Gran Para, 20 U.S. 471 (1822), 485; The Santissima Trinidad 7 Wheat. 283, 330.

[p. 16] These arguments spilled beyond the courtroom. As the cases involving Daniels and other captains moved through the system, Iberian diplomats were pressuring U.S. officials to do more to rein in privateering from U.S. ports. Not surprisingly, their arguments echoed those of the lawyers hired and directed by Iberian consuls. In March 1819, the Portuguese ambassador, José Corrêa da Serra, visited John Quincy Adams to demand (in “crippled English,” Adams noted privately) that the government declare all captains and crews sailing on ships with commissions from Artigas to be pirates. The ambassador was fixated on Artigas’s lack of seaports under his command. Corrêa da Serra urged Adams to imagine his reaction if privateers attacked U.S. citizens and their property “under the flag and Commission of Tecumseh.”[67] The complaint added to one months before in which Corrêa da Serra railed that “privateering Commissions from Artigas were mere absurdities” and carried as much weight as commissions “from the Seminole Indians.”[68]

67. John Quincy Adams, 19 March 1819 entry, *The John Quincy Adams Digital Diary.* At: https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1819-03-p050--entry19.

68. John Quincy Adams, 17 October 1818 entry, *The John Quincy Adams Digital Diary.* At: https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v30-1818-10-p405--entry17.

[p. 17] Although in making these analogies Corrêa da Serra was focusing on Artigas’s lack of access to ports, the comparisons to Native American polities were hardly casual. Floating phrases such as “limited and partial recognition” and “*de facto* statehood” and debating the kinds of wars that former colonies could legitimately wage, advocates in privateering disputes were grasping at ways to situate some political communities in an in-between, unsettled status. It would be another fifteen years before Chief Justice Marshall would characterize the Native American polities as “domestic dependent nations.”[69] There was nothing approaching a settled vocabulary to draw on to describe quasi-sovereignty, sovereign indeterminacy, or in-

69. Cherokee Nation v. Georgia, 30 U.S. 1 (1831).

completely recognized states. The ambiguities left South American governments in a bind. By issuing privateering commissions, they were asserting the right of sovereigns to make war but exposing themselves to accusations of sponsoring piracy.

69. Cherokee Nation v. Georgia, 30 U.S. 1 (1831).

什么是战争？/ What is War?

[p. 17] 国家地位与战争权利之间的联系，在针对丹尼尔斯的第二起重大诉讼——*Nereyda* 号案——中尤其突出。与 *Gran Para* 号案一样，有强有力的证据表明，丹尼尔斯违反了美国中立法。为支持西班牙领事要求追回 *Nereyda* 号的诉请，“不可抗拒号”上的两名海员证实，该船离开巴尔的摩时，甲板下藏有武器，船上有五六十人，超过一般商业航行所需的船员数量。[70]但案件还有另一因素，促使西奥多里克 • 布兰德法官作出有利于丹尼尔斯的判决。“不可抗拒号”的接管船员已将 *Nereyda* 号送往胡安格列戈法庭，在那里，该船被判为合法捕获物。丹尼尔斯的合作者亨利 • 查尔兹，详细作证说明了法庭程序，以及把 *Nereyda* 号出售给委内瑞拉公民弗兰切斯基的情况。[71]

70. 海员还作证说，该船在布宜诺斯艾利斯又搭载 20 人，却未增加武器；这进一步证明，该船早已为战争装备妥当 (Bernabeu v. Nereyda, USCC Maryland, NARA Philadelphia).

71. Bernabeu v. Nereyda, USCC Maryland, NARA Philadelphia.

[p. 17] 布兰德支持丹尼尔斯。他首先确认，“不可抗拒号”在巴尔的摩被装备为战船，违反了中立法。但布兰德接着说，他面前的案件并非有关丹尼尔斯的刑事责任，而是有关“一艘获得合法委任的交战方巡航舰所实施的捕获”。布兰德承认，对于南大西洋那些“同时诞生”的国家的地位，以及依“地球上较古老国家”的看法应允许它们取得何种“位置”，普遍存在不确定性。他认为，这些问题“总体而言，与其说是法律性的，不如说是政治性的”。布兰德指出，内战仍是一种战争。如果一个中立国家宣布某场冲突为内战，“其法院便不能把战争所许可的敌对行为视为犯罪”。[72]

72. 同上

[p. 18] 与 *Gran Para* 号案双方律师一样，布兰德细读了门罗有关南美洲国家的总统咨文。他指出，1817 年 12 月 2 日，门罗曾宣布，西班牙的原殖民地并非处于“普通的暴动或叛乱”之中，而是在进行一场“双方力量大致相当的内战”。布兰德引用了门罗 1818 年 11 月第二次向国会发表的咨文，其中将东岸地区称为“独立”；又引用总统 1819 年 12 月 17 日的咨文，其中确认美国港口“向双方同等开放”。门罗曾说，布宜诺斯艾利斯正与“拉普拉塔河以北、与之接壤的诸省”一道，稳步坚持其独立主张。布兰德得出结论，总统

[p. 17] The link between state status and rights to make war featured prominently in the second major suit against Daniels, the case of the *Nereyda.* As in the *Gran Para* case, there was strong evidence that Daniels had violated U.S. neutrality laws. In support of the libel by the Spanish consul to recover the *Nereyda*, two seamen from the *Irresistible* confirmed that the ship had left Baltimore carrying arms below deck and fifty or sixty men—more than a typical crew for a commercial voyage.[70] But the case had another element, one that led Judge Theodorick Bland to rule in favor of Daniels. A prize crew from the *Irresistible* had taken the *Nereyda* to the court at Juan Griego, where it was declared a lawful prize. Daniels’s associate Henry Childs gave detailed testimony about the court proceedings and the sale of the *Nereyda* to the Venezuelan citizen Franceschi.[71]

70. The seamen also testified that another 20 men—but no additional arms—were taken on board in Buenos Aires—further evidence that the ship was already outfitted for war (Bernabeu v. Nereyda, USCC Maryland, NARA Philadelphia).

71. Bernabeu v. Nereyda, USCC Maryland, NARA Philadelphia.

[p. 17] Bland backed Daniels. He began by affirming that the *Irresistible* had been outfitted for war in Baltimore in violation of the neutrality act. But, Bland continued, the case before him was not about Daniels’s criminal responsibility, it was about the “seizure by a lawfully commissioned cruiser of a belligerent.” Bland acknowledged widespread uncertainty about the status of nations “born at once” in the southern Atlantic and “the station they were to be allowed to assume” according to “the older nations of the earth.” He regarded these questions as “generally rather political than legal.” Civil war was still a kind of war, Bland observed. If a neutral nation declared a conflict to be a civil war, “its courts cannot consider as criminal those acts of hostility, which war authorizes.”[72]

72. Ibid.

[p. 18] Like the lawyers on both sides of the *Gran Para* case, Bland parsed Monroe’s presidential messages about South American states. He noted that on 2 December 1817, Monroe had declared that the former colonies of Spain were not engaged in an “ordinary insurrection or rebellion” but in a “civil war between parties nearly equal.” Bland quoted Monroe’s second address to Congress in November 1818, in which he named the Banda Oriental as “independent,” and he cited the president’s message of 17 December 1819, which affirmed that U.S. ports were

显然“把何塞 • 阿蒂加斯担任首领的那个国家，确定为能够拥有海上武装、且地理位置适合拥有这种武装的国家”。行政当局也明确承认“该国与西班牙之间存在内战”。[73]

73. 同上

[p. 18] 布兰德随后转向东岸地区与委内瑞拉的关系问题。他断言，门罗总统只识别出“内战中的两方：‘西班牙与殖民地’”。布兰德毫不保留地说：“行政当局已明确承认，东岸地区与委内瑞拉这两个政府，是对西班牙战争中的共同交战方、伙伴、同伴和盟友。”当案件上诉至最高法院时，这种笃定令斯托里大法官恼火。布兰德继续说，依照万国法，经授权的交战方船只所实施的捕获，即使该船曾在中立国港口“非法装备”，也仍然有效。他总结道：“毫无疑问，东方共和国政府颁发给不可抗拒号的委任状是合法的。”在上诉中，马里兰巡回法院维持了布兰德的判决，即 *Nereyda* 号无须归还西班牙政府。[74]

74. 同上着重号为原文所有。

[p. 18] 案件提交最高法院后，西班牙一方的律师尝试新策略，对胡安格列戈捕获法庭的管辖权及其程序提出重重质疑，并主张美国法院拥有广泛权力，可以评判外国捕获程序。[75]他们首先宣称，“没有任何证据表明委内瑞拉与东岸地区之间存在联盟”。即便门罗承认东岸地区与委内瑞拉都“在同西班牙交战”，也不必然意味着它们是盟友，甚至不意味着它们在进行同一场战争。门罗的表述，也“不足以授权法院赋予阿蒂加斯全部战争权利”。[76] 西班牙的代理律师进一步提出，即使委内瑞拉被承认为完全独立，其法律也不能被认为可以抵触美国法律，因为“一切主权，从其性质来说，作为一般规则，都是地方性的”。美国法院的管辖权源自这一原则：外国捕获法庭的程序“始终可以被审查”，其行为始终可以被另一国权力机关宣告无效。[77]

75. La Nereyda, 21 U.S. 108 (1823). 不再质疑内战含义的这一转向，或许反映了最高法院在*美国诉帕尔默案*中的判决；该案涉及一名持布宜诺斯艾利斯委任状的私掠者 (United States v. Palmer, 16 U.S. 610 [1818]). 马歇尔写道，如果美国“保持中立，并承认内战的存在，其法院就不能把战争所许可的敌对行为视为犯罪”(Rubin, *The Law of Piracy〔题名译释：海盗法〕*, 158). 另参 Arlyck, *The Nation at War〔题名译释：战争中的国家〕*, 217–24.

76. 注意，门罗说的是东岸地区，而不是东方共和国；后者才是阿蒂加斯委任状上列明的邦联。

77. Bernabeu v. Nereyda, USCD Maryland, NARA Philadelphia.

“equally open to both parties.” Monroe had commented that Buenos Aires was steadily maintaining its claim to independence, alongside “the Provinces north of the La Plata bordering on it.” Bland concluded that the president had clearly “designated that country of which José Artigas is the Chief, as one capable of having a maritime force, and as conveniently situated for such a force.” The executive had also explicitly recognized a “civil war between that country and Spain.” [73]

73. Ibid.

[p. 18] Bland now turned to the question of the relationship between the Banda Oriental and Venezuela. President Monroe, he asserted, had identified only “two parties in the civil war, ‘Spain and the Colonies.’” With a confidence that would irk Justice Story when the case arrived on appeal at the Supreme Court, Bland stated without qualification that “the Executive has distinctly recognized those two governments of the Banda Oriental, and of Venezuela as cobelligerents, associates, companions, and allies in the war against Spain.” According to the law of nations, Bland continued, captures by an authorized belligerent’s vessel, even one “illegally fitted out” in the ports of a neutral, were valid. He concluded, “There can be no doubt that the commission of the Irresistible from the government of the Oriental Republic was legal.” On appeal, the circuit court of Maryland affirmed Bland’s ruling that the *Nereyda* did not have to be restored to the Spanish government.[74]

74. Ibid. Emphasis in the original.

[p. 18] When the case reached the Supreme Court, lawyers for the Spanish side tried a new tactic, heaping doubt on the jurisdiction and proceedings of the prize court at Juan Griego and asserting an expansive authority of U.S. courts to evaluate foreign prize proceedings.[75] They began by asserting that there was “no evidence whatever of an alliance between Venezuela and the Banda Oriental.” Even though Monroe had acknowledged that the Banda Oriental and Venezuela were “at war with Spain,” it did not necessarily follow that they were allies—or even engaged in the same war. Nor was Monroe’s statement “sufficient to authorize the Court to allow to Artigas all the rights of war.” [76] Going further, attorneys for Spain proposed that even if Venezuela was recognized as fully independent, its law could not be held to contradict that of the United States since “all sovereignty is, in its nature, as a general rule, local.” U.S. courts’ jurisdiction derived from the principle that a foreign prize court’s proceedings were “always open to inquiry” and its acts could always be nullified by another power.[77]

75. La Nereyda, 21 U.S. 108 (1823). The pivot away from questioning the meaning of civil war perhaps reflected the Supreme Court’s decision in *U.S. v. Palmer*, the case of a privateer with a Buenos Aires commission (United States v. Palmer, 16 U.S. 610 [1818]). Marshall wrote that if the United States “remains neutral, and recognizes the existence of a civil war, its courts cannot consider as criminal those acts of hostility which war authorizes” (Rubin, *The Law of Piracy*, 158). See also Arlyck, *The Nation at War*, 217–24.

76. Note that Monroe had named the Banda Oriental, not the

[p. 19] 斯托里大法官在命令向西班牙归还 *Nereyda* 号时，避开了这些问题。他的裁决聚焦于丹尼尔斯未能提供胡安格列戈法庭文件这一事实。斯托里断言，不遵从法院要求提交文件的命令，使“整个交易”都蒙上疑点。斯托里也采信了出售给弗兰切斯基只是骗局的证据，指出弗兰切斯基未出席美国的诉讼程序，而且该船抵达美国后，完全由丹尼尔斯管理。斯托里的裁决，隐含地确认了该院质疑外国捕获法庭程序的权力。[78]

78. 同上

[p. 19] 与围绕捕获 *Gran Para* 号的论证一样，Nereyda 号案中的各方立场，揭示了在打击南美洲私掠的行动中，那些悬而未决的问题所涉及的政治利害。辩护者以不同方式解释美国总统关于南美洲政治体主权的表述，暴露了这些政治体地位的含混。代表外国权利主张者的律师援引“部分承认”，把有限主权赋予原殖民地，并警告不受约束的劫掠会伤害中立方。在 *Nereyda* 号案中，论证集中于：南美洲政治体是在进行战争，还是在进行由叛乱引发的内战。这些辩论不仅对丹尼尔斯支持者的合法性埋下疑问，也对各起义政府之间的关系，以及大西洋秩序的构成，埋下疑问。

Oriental Republic, the confederation listed on Artigas’s commissions.

77. Bernabeu v. Nereyda, USCD Maryland, NARA Philadelphia.

[p. 19] Justice Story sidestepped these issues in ordering the return of the *Nereyda* to Spain. His ruling focused on the fact that Daniels had not produced documents from the court at Juan Griego. The failure to respond to the court’s order to do so, Story asserted, created suspicion “as to the whole transaction.” Story also credited evidence that the sale to Franceschi had been a ruse, citing Franceschi’s absence in U.S. proceedings and Daniels’s exclusive management of the ship after its arrival in the United States. Implicitly, Story’s ruling affirmed the court’s authority to question foreign prize court proceedings.[78]

78. Ibid.

[p. 19] Like arguments about the capture of the *Gran Para*, the positions taken in the Nereyda case reveal the political stakes of unresolved questions in the campaign against South American privateering. Advocates interpreted statements by the U.S. president about the sovereignty of South American polities in ways that laid bare the ambiguities of their status. Lawyers representing foreign claimants referred to “partial recognition,” ascribed limited sovereignty to former colonies, and warned of the harm to neutrals of unbridled raiding. In the *Nereyda* case, arguments centered on whether South American polities were at war or in a civil war ignited by rebellion. The debates planted doubts not just about the legitimacy of Daniels’s sponsor but also about the relationships among insurgent governments and the composition of the Atlantic order.

什么是海盗？/ What is a Pirate?

[p. 19] 这些案件并未终结丹尼尔斯的法律风险。第三起诉讼要求追回从 *Globo* 号及另外二十五艘葡萄牙船上夺得的战利品，并获得胜诉。[79]丹尼尔斯还面对刑事指控。其中一项起诉由“不可抗拒号”哗变的两位头目引发，他们指控丹尼尔斯在该船第二次巡航中谋杀一位英国船长：一艘英国商船降旗之后，仍遭到开火。此案也由布兰德法官审理；他援引战争中的混乱，判丹尼尔斯并未故意造成该船长死亡。另一组指控，则是巴尔的摩回应华盛顿官员施压、要求限制南美洲私掠行动的一部分。丹尼尔斯因违反中立法受审。西奥多里克·布兰德再次宣告丹尼尔斯无罪，部分理由是船长行动的时间，不在最新版中立法所涵盖的时期内。沮丧的约翰·昆西·亚当斯认为，这一判决建立在“法律上的诡辩”之上，体现了一种狭隘的“法律逻辑——一套人为的推理系统，专用于法院，在其他任何地方都毫无用处”。[80]

79. 不利于丹尼尔斯的判决获巡回法院维持，未上诉至最高法院 (Swift v. J. D. Daniels, AD USDC Maryland, NARA Philadelphia.)

80. John Quincy Adams, 1819 年 5 月 26 日日记, *The John Quincy Adams Digital Diary*〔题名译释：*约翰·昆西·亚当斯*

[p. 19] Daniels’s legal jeopardy did not end with these cases. A third suit was brought—and won—for the recovery of the booty seized from the *Globo* and twenty-five other Portuguese ships.[79] Daniels also faced criminal charges. One indictment was sparked by the two leaders of the *Irresistible* mutiny, who accused Daniels of the murder of a British captain during the ship’s second cruise, when shots were fired on a British merchant vessel after it had lowered its flag. This case, too, came before Judge Bland, who cited the fog of war and acquitted Daniels of intentionally causing the captain’s death. The second set of charges formed part of a response in Baltimore to pressures from Washington officials to curtail South American privateering. Daniels was tried for violating the neutrality act. Theodorick Bland again acquitted Daniels, reasoning in part that the captain had acted outside the period covered by the latest revision of the neutrality act. To a frustrated John Quincy Adams, the verdict was based on “a legal quibble,” an example of a cramped “Law-Logic—an artificial system of reasoning, exclusively used in Courts of Justice, but good for nothing any where else.”[80]

数字日记）. 网址：https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1819-05-p102--entry26.

[p. 19] 丹尼尔斯逃过了惩罚，但*“不可抗拒号”*的一些船员没有这么幸运。七名哗变者在巴尔的摩因海盗罪受审，另有十九人于 1819 年 7 月在里士满受审。[81]*美国诉史密斯案*，以头目之一托马斯 • 史密斯命名，在弗吉尼亚巡回法院审理，首席大法官马歇尔作为两位巡回审判法官之一参与审判；该案又提交美国最高法院，由约瑟夫 • 斯托里大法官和亨利 • 布罗克霍尔斯特 • 利文斯顿大法官审理。两位颇具影响力的律师在该案中辩论：司法部长威廉 • 沃特代表政府，丹尼尔 • 韦伯斯特代表被告。[82]

81. 弗吉尼亚州对 19 人进行了九次审判。Samuels, Joel H., “The Full Story of United States v. Smith, America’s Most Important Piracy Case〔题名译释：美国最重要海盗案“美国诉史密斯案”全史〕,” Penn State Journal of Law & International Affairs 1, 2 (2012): 320–62, 348.

82. United States v. Smith, 18 U.S. 153, 183 (1820).

[p. 20] 这起海盗案展开时，当局正致力于强化法律，以遏制劫掠。面对涉及美国公民的私掠激增，国会于 1819 年 3 月通过立法，扩大海盗罪的定义；这距丹尼尔斯与*“不可抗拒号”*船员返回美国港口，仅有一个月。[83]该法令规定，任何人在公海上犯下*“万国法所定义的*海盗罪”，一经定罪，可以“处以死刑”。[84]法令未具体说明，法院应如何确定万国法之下海盗罪的定义。

83. 部分困难源自近来强化反海盗法律的尝试，而这些尝试恰恰是在回应北美劫掠海员的创造性策略。除宪法授权国会立法规制海盗行为之外，政策基线是国会 1790 年的立法，即《惩罚某些危害美国罪行法》(Act of Apr. 30, 1790, ch. 9, 8, 1 stat. 112 [1790]). 该法规定，公海上的谋杀、抢劫及其他犯罪，如果同样罪行发生于陆上时依美国法律属于死罪，便可处以死刑。1812 年，马萨诸塞州的一起案件提出，海盗行为是否必须包含暴力 (United States v. Tully, 28 F. Cas. 226 [C.C. Mass 1812]; Alfred P., Rubin, *The Law of Piracy*〔*题名译释：海盗法*〕, International Law Studies 63 [Newport: Naval War College Press, 1988], 128–137). 1818 年，美国最高法院对 1790 年法令的解释是：如果同样罪行在美国法院不能判处死刑，那么发生于公海、涉及“完全属于外国臣民”之物的抢劫，就不能被视为海盗罪并处以死刑 (转引自 Samuels, “The Full Story of United States v. Smith〔题名译释：美国诉史密斯案全史〕,” 334).

84. Act to Protect the Commerce of the United States, and Punish the Crime of Piracy〔题名译释：保护美国商业并惩罚海盗罪法〕, Act of Apr. 30, 1790, chapter 9, 8, 1 stat. 112 (1790). 着重号为本文作者所加。

79. The ruling against Daniels was confirmed by the circuit court and was not appealed to the Supreme Court (Swift v. J. D. Daniels, AD USDC Maryland, NARA Philadelphia.)

80. John Quincy Adams, 26 May 1819 entry, *The John Quincy Adams Digital Diary.* At: https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1819-05-p102--entry26.

[p. 19] If Daniels escaped punishment, some crew members of the *Irresistible* were not so lucky. Seven mutineers were tried in Baltimore for piracy, and nineteen others were tried in Richmond in July 1819.[81] *United States v. Smith* (named for Thomas Smith, one of the ringleaders) was heard in the circuit court of Virginia, with Chief Justice Marshall serving as one of two justices on circuit, and presented at the U.S. Supreme Court before Justice Joseph Story and Justice Henry Brockholst Livingston. Two influential lawyers argued the case, Attorney General William Wirt for the government and Daniel Webster for the accused.[82]

81. There were nine trials conducted for 19 men in Virginia. Samuels, Joel H., “The Full Story of United States v. Smith, America’s Most Important Piracy Case,” Penn State Journal of Law & International Affairs 1, 2 (2012): 320–62, 348.

82. United States v. Smith, 18 U.S. 153, 183 (1820).

[p. 20] The piracy case unfolded against the background of efforts to strengthen laws to contain raiding. Faced with the surge in privateering involving U.S. citizens, Congress passed legislation in March 1819—only a month before the return of Daniels and the crew of the *Irresistible* to U.S. ports—to widen the definition of piracy.[83] The act established that anyone on the high seas who committed “the crime of piracy, *as defined by the law of nations*” could be “punished with death” if convicted.[84] It did not specify how the courts would determine the definition of piracy under the law of nations.

83. Part of the difficulty stemmed from recent attempts to strengthen laws against piracy, precisely in response to the creative strategies of North American mariners engaged in raiding. Besides the authorization in the Constitution of Congress to make laws to regulate piracy, the baseline for policy was congressional legislation in 1790, the Act for the Punishment of Certain Crimes Against the United States (Act of Apr. 30, 1790, ch. 9, 8, 1 stat. 112 [1790]). The Act established that murder, robbery, and other crimes on the high seas would be punishable by death if the same crimes committed on land were defined as capital crimes under the laws of the United States. In 1812, a Massachusetts case raised the question of whether piracy had to include violence (United States v. Tully, 28 F. Cas. 226 [C.C. Mass 1812]; Alfred P., Rubin, *The Law of Piracy*, International Law Studies 63 [Newport: Naval War College Press, 1988], 128–137). In 1818, the U.S. Supreme Court interpreted the 1790 act to mean that a robbery committed on the high seas “belonging exclusively to subjects of a foreign state” could not be considered piracy and punishable by death if the same crime could not carry a death sentence in U.S. courts (quoted in Samuels, “The Full Story of United States v. Smith,” 334).

84. Act to Protect the Commerce of the United States, and Punish the Crime of Piracy, Act of Apr. 30, 1790, chapter 9, 8, 1 stat. 112 (1790). Emphasis added.

[p. 20] 针对*“不可抗拒号”*哗变船员的刑事案件，检验了对海盗罪法规的解释。[85]陪审团毫不困难地得出结论：哗变者在胡安格列戈夺取“不可抗拒号”，随后“出海巡航，没有任何委任文件”。他们也认定，船员确如指控所言，捕获并洗劫了一艘西班牙船。但陪审员无法确定，这种行为在法律上是否构成海盗罪。在马歇尔鼓励下，他们作出特别裁决：“如果上述掠夺与抢劫，依照美国国会法令……构成海盗罪，那么我们认定该被告有罪；如果上述掠夺与抢劫，依照该国会法令不构成海盗罪，那么我们认定他无罪。”[86] 使陪审团困惑、并令法官产生分歧的问题，是被告是否犯下万国法之下的海盗罪，因而可以依国会法令受到惩罚。

85. 1819 年法规于 1820 年修订并加强。参见下文注 96。

86. United States v. Smith, 18 U.S. 153, 183 (1820), 153–154.

[p. 20] 司法部长威廉·沃特宣称，此事毫无神秘之处。他说，所有“公法著作家”都认同，海盗行为是“在海上实施劫掠，未获委任状授权，或超出其授权范围”。这一定义是“确定、一致且无异议的”。沃特推论，既然所有国家都可以把海盗作为 *hostes humani generis*（全人类之敌）审判和惩罚，那么海盗罪的定义，必然牢固地扎根于万国法。[87]丹尼尔·韦伯斯特反驳说，公法著作家之间并无固定的海盗罪定义。该法令的目的，实际上是让国会负责解决这一问题。

87. 同上, 155.

[p. 21] 在最高法院，斯托里大法官同意沃特的说法：万国法著作家广泛认同，海盗行为是战争状态之外的海上抢劫。惩罚此类行为，是“所有国家的一般实践”；这种模式构成“决定性证据”，表明其定义无须建立在“国内法典的特定条款之上，而应建立在万国法之上”。[88] 利文斯顿在异议意见中，呼应了马歇尔在巡回法院提出的忧虑：只有依国内法所定义的海盗行为，才能受到惩罚。利文斯顿认为，责任在于国会，“从各项来源中选择……然后宣布，并以合理的精确程度界定，何种或哪些行为构成这一罪行”。[89] 海盗罪不同于谋杀或抢劫；后两者在联邦各州都是犯罪，“任何人都不得以不知法为由辩解”。[90] 公民对万国法并没有那么熟悉。利文斯顿进一步指出，如果宣布“一切违反万国法的行为，无须定义其中任何一种，都应*处以死刑*”，那将是不公正的。[91]

88. 同上, 162.

89. 同上, 180.

90. 同上, 182.

91. 同上, 183. 着重号为本文作者所加。

[p. 20] The criminal case against the mutinous crew of the *Irresistible* tested interpretations of the piracy statute.[85] The jury had no trouble reaching the conclusion that the mutineers had seized the *Irresistible* at Juan Griego and “proceeded to sea on a cruize, without any documents of commission whatever.” They also found that the crew had captured and plundered a Spanish vessel, as charged. But jurors could not decide whether such an act amounted to piracy under the law. With Marshall’s encouragement, they issued a special verdict: “If the plunder and robbery aforesaid be piracy under the act of the Congress of the United States …then we find the said prisoner guilty; if the plunder and robbery, above stated, be not piracy under the said act of Congress then we find him, not guilty.”[86] The question that baffled the jury and divided the judges was whether the defendants had committed piracy under the law of nations and could therefore be punished under the act of Congress.

85. The 1819 statute was revised and strengthened in 1820. See note 96 below.

86. United States v. Smith, 18 U.S. 153, 183 (1820), 153–154.

[p. 20] Attorney General William Wirt declared that there was no mystery. All “writers on the public law,” he stated, agreed that piracy was “depredation on the seas, without the authority of a commission, or beyond its authority.” The definition was “certain, consistent, and unanimous.” Wirt reasoned that since all nations could try and punish pirates as *hostes humani generis*, it followed that piracy’s definition was securely rooted in the law of nations.[87] Daniel Webster countered that there was no fixed definition of piracy among writers on public law. The purpose of the act was in fact to make Congress responsible for resolving this question.

87. Ibid., 155.

[p. 21] In the Supreme Court, Justice Story agreed with Wirt that there was broad consensus among writers on the law of nations that piracy was robbery at sea outside a state of war. It was “the general practice of all nations” to punish such actions, a pattern that amounted to “conclusive proof” that the definition need not rest on “particular provisions of the municipal code, but upon the law of nations.”[88] In dissent, Livingston echoed concerns raised in the circuit court by Marshall that piracy was punishable only as it was defined under domestic law. The burden was on Congress, Livingston argued, “to select from sources …and then to declare, and with reasonable precision to define, what act or acts should constitute this crime.”[89] Piracy was not like murder or robbery—crimes in every state of the union for which “no one is allowed to allege his ignorance.”[90] Citizens were not so familiar with the law of nations. Further, Livingston observed, it would be unjust to declare “that all offences against the law of nations, without defining any one of them, should be punished *with death.*”[91]

88. Ibid., 162.

89. Ibid., 180.

90. Ibid., 182.

[p. 21] 尽管法院确认他们有罪，这些人并未被绞死。面对港口城市要求宽大处理的压力，政府赦免两人，并对其余人暂缓执行刑罚。[92]请求宽恕的呼声强调，哗变者的犯罪并没有很强的暴力性。辩方提出证词，称这些海盗船员温和地对待受害者，从劫掠中获利也很有限。一名船员作证说，自己是不情愿的参与者，在“不可抗拒号”于胡安格列戈被夺取后，未能上岸。报界、陪审团，甚至某些法官，都难以将定居港口社群成员实施的小规模暴力，与想象中“所有人的敌人”不受约束的暴力等同起来。[93]

92. 要求宽恕的呼声来自报界、神职人员、法官和居民。4月，联邦官员收到一份由 4,000 名巴尔的摩居民签署的请愿书，要求赦免两名已定罪的哗变者 (John Quincy Adams, 1820 年 4 月 11 日日记, *The John Quincy Adams Digital Diary〔题名译释：约翰·昆西·亚当斯数字日记〕*, 网址：https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1820-04-p303--entry11). 3 月的赦免与缓刑，是更广泛回应的一部分。在 1820 年 3 月 13 日的会议上，内阁成员讨论是否赦免四十五名在巴尔的摩、里士满、查尔斯顿、萨凡纳和新奥尔良被判海盗罪、获死刑的人。他们都曾乘持有南美洲委任状的船只航行。结论是，每组处决一部分，其余暂缓执行。John Quincy Adams, 1820 年 3 月 13 日日记, *The John Quincy Adams Digital Diary〔题名译释：约翰·昆西·亚当斯数字日记〕*. 网址：https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1820-03-p274--entry13. Head 估计，1816 至 1820 年间，南美洲私掠船上共有 129 名船员被控海盗罪，仅七人在波士顿、巴尔的摩、查尔斯顿和萨凡纳被处决。Head, David, “Baltimore Seafarers, Privateering, and the South American Revolutions, 1816–1820〔题名译释：巴尔的摩海员、私掠与南美洲革命，1816—1820〕,” Maryland Historical Magazine 105 (2008): 269–93, 282.

93. Samuels, “The Full Story of United States v. Smith〔题名译释：美国诉史密斯案全史〕,” 345–46, 355–59; *Niles Weekly Register*, 17 June 1817, 275–76.

[p. 22] 有学者声称，针对 *Creola* 号与*“不可抗拒号”*哗变者的案件，是美国历史上“最重要的海盗案”，并“对国际法在美国的发展产生深远影响”；这一说法值得怀疑。[94]该案确实简化了美国法院处理海盗案件的方式，因为它确认，万国法可以不经详细阐释，直接被纳入美国刑事法规。[95]但这一判决只是把责任从国会转移给法院：后者必须发展出一套法律，以便在界定万国法时有所依据。[96]在这一任务上，斯托里的意见能提供多少帮助，颇有疑问。他那长达十七页、讨论海盗定义的脚注表明，法律著作家承认海盗是万国法之下的犯罪，却没有描述“所有国家的一般实践”的其他方面，也未说明它与普通法下海盗罪的联系。[97]正如鲁宾所言，这种路径留下了一种可能：“海盗”标签可以被用来“谴责美国国内法体系想要附加在这一标签之下的任何罪行”。[98]

94. Samuels, “The Full Story of United States v. Smith〔题名译释：美国诉史密斯案全史〕,” 320. 关于其他重要海盗案件，参见 Arlyck, *The Nation at Sea〔题名译释：海上的国家〕*, 202–227; and LaCroix, *The Antebellum Constitution〔题名译释：内战前的宪法〕*, 88–104.

91. Ibid., 183. Emphasis added.

[p. 21] Despite the court’s affirmation of their guilt, the men did not hang. Responding to pressures from port cities for leniency, the government pardoned two men and issued a reprieve for the others.[92] The calls for mercy highlighted the fact that the mutineers’ crimes had not been very violent. The defense presented testimony that the piratical crew had treated its victims gently and profited only slightly from their predations. One crew member testified he was an unwilling participant who had not been able to get to shore after the *Irresistible* was seized in Juan Griego. The press, the jury, and even some judges found it difficult to equate an act of small violence by members of settled port communities with the imagination of unfettered violence by enemies of all.[93]

92. Calls for mercy came from the press, clergy, judges, and residents. In April, federal officials received a petition signed by 4,000 residents of Baltimore calling for a pardon of two convicted mutineers (John Quincy Adams, 11 April 1820 entry, *The John Quincy Adams Digital Diary,* at: https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1820-04-p303--entry11). The pardons and reprieves in March were part of a broader response. At a meeting on 13 March 1820, cabinet members discussed whether to issue pardons for forty-five men convicted of piracy and under sentence of death in Baltimore, Richmond, Charleston, Savannah, and New-Orleans. All had sailed with ships carrying South American commissions. The conclusion was to execute some from each group and issue reprieves for the rest. John Quincy Adams, 13 March 1820 entry, *The John Quincy Adams Digital Diary*. At: https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1820-03-p274--entry13. Head estimates that between 1816 and 1820, 129 crew members on South American privateers were charged with piracy, and only seven were executed in Boston, Baltimore, Charleston, and Savannah. Head, David, “Baltimore Seafarers, Privateering, and the South American Revolutions, 1816–1820,” Maryland Historical Magazine 105 (2008): 269–93, 282.

93. Samuels, “The Full Story of United States v. Smith,” 345–46, 355–59; *Niles Weekly Register*, 17 June 1817, 275–76.

[p. 22] It is doubtful that the case against the *Creola* and *Irresistible* mutineers was, as one scholar claims, the “most important piracy case” in U.S. history and had “a profound effect on the development of international law in the United States.”[94] The case did simplify U.S. courts’ approach to piracy cases by affirming that the law of nations could be incorporated, without elaboration, in a U.S. criminal statute.[95] But the ruling merely shifted from Congress to the courts the burden of developing a body of law on which to rely in characterizing the law of nations.[96] In that task, Story’s opinion was of questionable help. His seventeen-page footnote on definitions of piracy showed that legal writers recognized piracy as a crime under the law of nations, but it did not describe other aspects of “the general practice of all nations” nor specify the connections to piracy under the common law.[97] As Rubin notes, the approach left open the possibility that the label of “piracy” might be used “to condemn whatever crimes the municipal law system of the United States wanted to attach to the label.”[98]

95. 该案似乎打破了海盗案件的“积压僵局”，因而立即影响了起诉。Rubin, *The Law of Piracy〔题名译释：海盗法〕*, 146.

96. 感谢 David Golove 与 Kevin Arlyck 就此案提出有益意见。

97. United States v. Smith, 18 U.S. 153, 183 (1820), 163–180; 另参 Rubin, *The Law of Piracy〔题名译释：海盗法〕*, 145–146.

98. Rubin, *The Law of Piracy〔题名译释：海盗法〕*, 147. 事实上，仅几年后，法院便被要求在另一起案件中检验海盗罪的含义；该案也涉及一艘持阿蒂加斯委任状的巴尔的摩船 (The Antelope〔题名译释：羚羊号〕, 23 U.S. 66 1825). 判决维持了下级法院的裁定：从西班牙船上夺取并带到美国的被奴役非洲人，应归还西班牙的权利主张者。马歇尔呼应斯托威尔勋爵 1816 年在英国 *Le Louis* 号案中的判决，认定奴隶贸易在万国法之下并不违法，因为有些国家仍认为这种贸易合法。即使美国海盗罪法规 1820 年的修订明确将奴隶贸易定义为海盗行为，也无关紧要。参见 Arlyck, *The Nation at Sea〔题名译释：海上的国家〕*, 256–65; John Thomas Noonan, *The Antelope: The Ordeal of the Recaptured Africans in the Administrations of James Monroe and John Quincy Adams〔题名译释：羚羊号：门罗与约翰•昆西•亚当斯政府时期再次被俘非洲人的苦难〕* (University of California Press, 1977); and Lauren Benton, “Abolition and Imperial Law, 1780–1820〔题名译释：废奴与帝国法律，1780—1820〕,” *Journal of Imperial and Commonwealth History* 39, 3: 355–74. 在 *Antelope* 号事件的一起衍生案件中，陪审团因船长持有阿蒂加斯的委任状，宣告其海盗罪不成立 (Noonan, *The Antelope〔题名译释：羚羊号〕*, 53).

94. Samuels, “The Full Story of United States v. Smith,” 320. On other important piracy cases, see Arlyck, *The Nation at Sea*, 202–227; and LaCroix, *The Antebellum Constitution*, 88–104.

95. The case had immediate effect on prosecutions by appearing to break “a logjam” of piracy cases. Rubin, *The Law of Piracy*, 146.

96. I thank David Golove and Kevin Arlyck for helpful comments on this case.

97. United States v. Smith, 18 U.S. 153, 183 (1820), 163–180; and see Rubin, *The Law of Piracy*, 145–146.

98. Rubin, *The Law of Piracy*, 147. The court in fact was called on to test the meaning of piracy just a few years later, in another case involving a Baltimore ship with a commission from Artigas (The Antelope, 23 U.S. 66 1825). The ruling affirmed a lower court judgment that enslaved Africans seized from a Spanish ship and brought to the United States should be returned to the Spanish claimants. Echoing a British ruling by Lord Stowell in the *Le Louis* case in 1816, Marshall found that the slave trade was not illegal under the law of nations since some nations continued to regard the trade as lawful. It did not matter that the 1820 revision of the U.S. piracy statute explicitly defined slave trading as piracy. See Arlyck, *The Nation at Sea*, 256–65; John Thomas Noonan, *The Antelope: The Ordeal of the Recaptured Africans in the Administrations of James Monroe and John Quincy Adams* (University of California Press, 1977); and Lauren Benton, “Abolition and Imperial Law, 1780–1820,” *Journal of Imperial and Commonwealth History* 39, 3: 355–74. In an offshoot of the *Antelope* affair, a jury acquitted the captain of piracy because he was carrying a commission from Artigas (Noonan, *The Antelope*, 53).

未获承认的国家 / States without Recognition

[p. 22] 当由*“不可抗拒号”*劫掠引发的案件在美国法院中推进时，哪些实体将获得国家承认的问题，也在大西洋两岸复杂的承认政治中展开。新生和正在形成的政治体的领导人，设法通过展示主权，确立其国家在国际秩序中的位置。[99]既有的帝国国家则拼合出权宜性的承认政策，官员希望这些政策既不损害帝国利益，也不动摇现有联盟。

99. Gaffield, Julia, Haitian Connections in the Atlantic World: Recognition after Revolution〔题名译释：大西洋世界中的海地联系：革命之后的承认〕(University of North Carolina Press, 2015) DOI: 10.5149/northcarolina/9781469625621.001.0001; Gould, *Among the Powers of the Earth〔题名译释：跻身世界列强〕*.

[p. 22] 1822 年，美国政府承认五个新国家——联合省、智利、大哥伦比亚、秘鲁和墨西哥——使从一系列政治试验转向区域国家体系的过程获得动力。[100]英国很快跟进：1823 年向南美洲派遣领事，并开始商业条约谈判，迈出部分承认的步骤；随后于 1825 年承认联合省、哥伦比亚、墨西哥和巴西。[101]这些事件背后，是一项复杂的帝国计划，试图通过外交与法律操作相结合，引导地区政治变化；这一计划经由捕获物诉讼与港口政治付诸实施。

100. 葡萄牙官员率先于 1821 年采取行动，承认拉丁美

[p. 22] As the cases arising from the raids of the *Irresistible* were moving through U.S. courts, questions about which entities would gain recognition as states were playing out in an intricate politics of recognition on both sides of the Atlantic. Leaders of new and emerging polities angled to position their states in the international order by demonstrating their sovereignty.[99] Established empire-states assembled ad hoc policies of recognition that officials hoped would not jeopardize imperial interests or destabilize existing alliances.

99. Gaffield, Julia, Haitian Connections in the Atlantic World: Recognition after Revolution (University of North Carolina Press, 2015) DOI: 10.5149/northcarolina/9781469625621.001.0001; Gould, *Among the Powers of the Earth.*

[p. 22] The transition from a collection of political experiments to a regional system of states gained momentum when, in 1822, the U.S. government recognized five new nations: the United Provinces, Chile, Gran Colombia, Peru, and Mexico.[100] Britain soon followed suit, taking steps toward partial recognition by dispatching consuls to South America in 1823 and beginning negotiations on commercial treaties, then recognizing the United Provinces, Colombia, Mexico, and Brazil in 1825.[101] Behind these events lay a complex imperial project to guide

洲国家。Rojas, Daniel, “The Recognition of Latin-American Independences: A Major Transformation in the History of the Law of Nations〔题名译释：拉丁美洲独立的承认：万国法史上的重大转变〕,” in Pezé, Warren and Rojas, Daniel E., eds. International Recognition. A Historical and Political Perspective〔题名译释：国际承认：历史与政治视角〕(Tübingen: Mohr Siebeck, 2022).

101. , Matthew McCarthy, , Privateering, Piracy and British Policy in Spanish America, 1810–1830〔题名译释：西属美洲的私掠、海盗行为与英国政策，1810—1830〕(Woodbridge: Boydell Press, 2013).

[p. 23] 不妨考察西班牙对美国私掠的反应。西班牙驻美国港口的领事，积极搜集私掠活动的情报，并组织法律行动。他们也向西班牙大使办公室大量报送西班牙船只被捕获的消息，抱怨船长和船员肆意劫掠后，竟敢返回美国城市，毫不担心承担后果。1795 至 1821 年任西班牙驻巴尔的摩领事的胡安 • 包蒂斯塔 • 贝尔纳贝乌，其通信揭示了这种领事行动的范围与活力。[102] 贝尔纳贝乌早期的报告，列举港内西班牙船只的进出，记录疫病暴发，并转述零星地方新闻。在任期最后五年，他的注意力几乎完全被私掠吸引——或按西班牙官员对美国海员劫掠的说法，是海盗行为。他向西班牙大使寄送详细信函，有时每日一封，不断催促拨款，以支付在私掠案件中代表西班牙政府的律师，并救济抵达巴尔的摩的西班牙海员；这些海员原在被捕船只上服役。他还极其详尽地描述自己资助的众多法律诉讼的进展，目的在于追回西班牙财产。

102. 关于西班牙领事的其他行动，参见 Arlyck, “Plaintiffs v. Privateers〔题名译释：原告诉私掠者〕”; and Sean Perrone, “John Stoughton and the “Divina Pastora” Prize Case, 1816–1819〔题名译释：约翰 • 斯托顿与“Divina Pastora 号”捕获物案，1816—1819〕,” *Journal of the Early Republic* 28, 2 (2008): 215–242.

[p. 23] 贝尔纳贝乌尤其鄙视“海盗丹尼尔斯”。丹尼尔斯带着作为捕获物的 *Nereyda* 号返港，竟“厚颜无耻地在街上闲逛”；与此同时，为维护西班牙利益而雇用的律师，却在艰难争取扣押船只，并以海盗罪逮捕丹尼尔斯。这令贝尔纳贝乌十分愤怒。[103] 即使司法执行官已接管 *Nereyda* 号，丹尼尔斯仍能修整该船、增添武装，准备再度巡航；贝尔纳贝乌对此怒不可遏，也担心松散的港口管制会让丹尼尔斯像其他私掠者一样，悄悄驶离港口。[104]1819 年 5 月，丹尼尔斯终于因海盗罪受审时，贝尔纳贝乌与律师会面商讨策略，并出席每次庭审。他预料丹尼尔斯会被宣告无罪，便向西班牙大使激烈抱怨诉讼程序的偏颇，并预测丹尼尔斯很快就会“自由而洁白如鸽”，西班牙一方则会彻底遭到“嘲弄”。[105] 丹尼尔斯获判无罪后，随着 *Nereyda* 号诉讼进入上诉程序，贝尔纳贝乌继续追踪船长的活动，并于 1822 年报告说，丹尼尔斯已作为西蒙 • 玻利瓦尔的代理人返回巴尔的摩，为加勒比海劫掠招募人员。[106]

regional political change through a combination of diplomacy and legal maneuvering, delivered through prize litigation and port politics.

100. Portuguese officials moved first to recognize Latin American states in 1821. Rojas, Daniel, “The Recognition of Latin-American Independences: A Major Transformation in the History of the Law of Nations,” in Pezé, Warren and Rojas, Daniel E., eds. International Recognition. A Historical and Political Perspective (Tübingen: Mohr Siebeck, 2022).

101. , Matthew McCarthy, , Privateering, Piracy and British Policy in Spanish America, 1810–1830 (Woodbridge: Boydell Press, 2013).

[p. 23] Consider the Spanish reaction to U.S. privateering. Spanish consuls in U.S. ports devotedly gathered information about privateering activities and organized legal action. They also flooded the Spanish ambassador’s office with reports of captures of Spanish ships and complaints about the audacity of captains and crews returning to U.S. cities without fear of consequences for rampant raiding. The correspondence of Juan Bautista Bernabeu, the Spanish consul in Baltimore between 1795 and 1821, reveals the scope and energy of this consular activism.[102] Bernabeu’s early reports listed the comings and goings of Spanish vessels in the harbor, recorded disease outbreaks, and passed along snippets of local news. In the final five years of his tenure, Bernabeu’s attention was almost entirely absorbed by privateering—or piracy, as Spanish officials described U.S. mariners’ raiding. He sent detailed, sometimes daily missives to the Spanish ambassador and hectored him about funds needed to pay lawyers to represent the Spanish government in privateering cases and support Spanish mariners arriving in Baltimore who had been serving on crews of captured vessels. He described in minute detail the progress of the numerous legal challenges he was sponsoring for the recovery of Spanish property.

102. On other Spanish consular actions, see Arlyck, “Plaintiffs v. Privateers”; and Sean Perrone, “John Stoughton and the “Divina Pastora” Prize Case, 1816–1819,” *Journal of the Early Republic* 28, 2 (2008): 215–242.

[p. 23] Bernabeu reserved special disdain for “the pirate Daniels.” He was incensed that Daniels returned with the *Nereyda* as a prize and was “strolling brazenly through the streets” while the lawyer hired to defend Spanish interests was struggling to get the vessel impounded and Daniels arrested for piracy.[103] Even after the marshal took charge of the *Nereyda*, Bernabeu was outraged that Daniels had been able to refit the ship and add to its armaments to make it ready to cruise again, and he fretted that lax port controls might allow Daniels to slip out of the harbor, as other privateers had done.[104] When Daniels was finally tried for piracy, in May 1819, Bernabeu met with lawyers to strategize about the case and attended all the sessions of the trial. Anticipating acquittal, he complained bitterly to the Spanish ambassador about the biased proceedings and predicted that Daniels would soon be “free and white as a dove” and the Spanish side thoroughly “mocked.”[105] After Daniels was acquitted and as the *Nereyda* suit proceeded on appeal, Bernabeu continued to track the captain’

103. Bernabeu 致 Onís，1819 年 4 月 16 日，行政总档案馆（Archivo General de Administración，以下简称 AGA）54, 07722。所有引自 Bernabeu 通信的文字，均由本文作者译出。

104. Bernabeu 致 Purviance，1819 年 8 月 23 日，AGA 54, 07722。

105. Bernabeu 致驻费城代办 Mateo de la Serna，1819 年 5 月 21 日，AGA 54, 07722。

106. Bernabeu 致 Andraga，1822 年 7 月 3 日，AGA 54, 07722。

[p. 24] 丹尼尔斯的事迹如此引人注目，部分因为他公然捕获了一艘西班牙军舰。在其他方面，他的行动并无特殊之处，贝尔纳贝乌的回应亦然。追踪丹尼尔斯的同时，贝尔纳贝乌还在处理数十起涉及从巴尔的摩出发私掠航行的案件；许多船长持有拉普拉塔河地区政治体颁发的委任状。1819 年 12 月，贝尔纳贝乌报告，港中另有八艘船卷入尚未了结的诉讼。[107]当月仅一天，地区法院就审理了涉及四宗捕获的事项，其中包括有关 *Nereyda* 号的一项动议，以及涉及约瑟夫 • 阿尔梅达所捕获船只的事项。阿尔梅达曾持阿蒂加斯的委任状巡航，在躲避阻止其继续劫掠的措施方面，比丹尼尔斯还要老练。[108]

107. Bernabeu 致 Mateo de la Serna，1819 年 12 月 3 日，AGA 54, 07722。

108. Bernabeu 致 de la Serna，1819 年 12 月 27 日，AGA 54, 07722。

[p. 24] 西班牙要求限制私掠、将美国海员作为海盗惩罚，构成《亚当斯—奥尼斯条约》谈判的背景；即使 1819 年谈判结束后，这一点仍然如此。美国官员有时把争端推入法院，以减轻外交紧张。西班牙驻美公使路易斯 • 德奥尼斯直接向亚当斯抱怨，丹尼尔斯驾驶一艘被捕西班牙军舰抵达巴尔的摩，并要求归还船只；亚当斯指示他，让西班牙领事提交海事诉状，请求返还该船。[109]

109. John Quincy Adams, 1819 年 4 月 24 日日记, *The John Quincy Adams Digital Diary*（*题名译释：约翰 • 昆西 • 亚当斯数字日记*）. 网址：https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1819-04-p076--entry24.

[p. 24] 与此同时，英国政策也在回应地缘政治与具体私掠纠纷的过程中发展。1821 年 9 月，一艘西班牙私掠船捕获了 *Lord Collingwood* 号，这是一艘载着贸易货物、从布宜诺斯艾利斯出发的英国双桅横帆船。该船被送到波多黎各，并在那里被判为合法捕获物。起初，英国政府以为扣船的原因是它突破了封锁；但很快发现，法庭判其可被没收的理由，是它作为外国船在西班牙领土从事贸易，而《印度群岛法》禁止这一行为。这一逻辑证实了商人的忧虑：费尔南多七世重登西班牙王位，将带来西班牙权力的复兴，以及封闭帝国体系的回归。各商行正从出口激增中获利，决心维持进入南美洲港口的机会。[110]英国官员威胁以海军干预解决捕获引发的紧张，西班牙政府于是让步。外交大

s activities, reporting in 1822 that Daniels had returned to Baltimore to recruit men for raiding in the Caribbean as an agent of Simón Bolívar.[106]

103. Bernabeu to Onís, 16 April 1819, Archivo General de Administración (hereafter AGA) 54, 07722. All quotes from Bernabeu’s correspondence are my translation.

104. Bernabeu to Purviance, 23 August 1819, AGA 54, 07722.

105. Bernabeu to Mateo de la Serna, Chargé des Affaires, Philadelphia, 21 May 1819, AGA 54, 07722.

106. Bernabeu to Andraga, 3 July 1822, AGA 54, 07722.

[p. 24] Daniels’s exploits attracted so much attention partly because they involved the brazen capture of a Spanish warship. In other respects, his actions were unexceptional—as was Bernabeu’s response. At the same time he was tracking Daniels, Bernabeu was attending to dozens of other cases involving privateering voyages from Baltimore, many led by captains carrying commissions from polities in the Río de la Plata. In December 1819, Bernabeu reported that there were eight other ships in the harbor subject to ongoing litigation.[107] On a single day in that month, the district court heard matters involving four captures, including a motion about the *Nereyda* and one involving a ship captured by Joseph Almeida, a captain who had cruised with a commission from Artigas and was even more adept than Daniels at evading attempts to block his continued raiding.[108]

107. Bernabeu to Mateo de la Serna, 3 December 1819, AGA 54, 07722.

108. Bernabeu to de la Serna, 27 December 1819, AGA 54, 07722.

[p. 24] Spanish demands to curb privateering and punish U.S. mariners as pirates formed the backdrop to negotiations over the Adams-Onís Treaty, even after negotiations were concluded in 1819. U.S. officials sometimes pushed disputes into the courts to lessen diplomatic tensions. When Luis de Onís, Spanish Minister in the United States, complained directly to Adams about Daniels’s arrival in Baltimore on a captured Spanish warship and demanded the ship’s return, Adams instructed him to have the Spanish consul file a libel for the return of the ship.[109]

109. John Quincy Adams, 24 April 1819 entry, *The John Quincy Adams Digital Diary.* At: https://www.primarysourcecoop.org/publications/jqa/document/jqadiaries-v31-1819-04-p076--entry24.

[p. 24] British policy, meanwhile, was also developing in response to both geopolitics and specific disputes about privateering. In September 1821, a Spanish privateer had captured the *Lord Collingwood*, a British brig carrying trade goods from Buenos Aires. The vessel was taken to Puerto Rico and condemned as good prize there. Initially, the British government assumed that the reason for the seizure was that the vessel had run a blockade, but it soon emerged that the prize had been condemned on the grounds that it was a foreign vessel trading in Spanish territory, an act prohibited under the Laws of the Indies. This logic confirmed merchants’ fears that the restoration of Fernando VII to the Spanish throne would bring a revival

臣乔治•坎宁淡化了这件事引发的对西紧张关系，把解决方式描述为“对地方性不满的地方性补救”。[111]

110. 英国对拉丁美洲的出口，占英国总出口的比重，从 1806 年的 2.3% 升至 1826 年的 12.6% (Rory M. Miller, *Britain and Latin American in the Nineteenth and Twentieth Centuries〔题名译释：十九与二十世纪的英国与拉丁美洲〕* [London: Longmans, 1993], 73). 关于南美洲市场开放之后，人们对其前景的过高期待，参见 Platt, *Latin American and British Trade〔题名译释：拉丁美洲与英国贸易〕*, 23–64.

111. McCarthy, *Privateering, Piracy and British Policy in Spanish America〔题名译释：西属美洲的私掠、海盗行为与英国政策〕*, 101–17, 108.

[p. 24] *Lord Collingwood* 号案强化了英国官员制定渐进承认政策的决心。目标是维持西班牙作为盟友，同时在安抚辉格党支持的商业精英与安抚反革命强国之间寻找路线。[112]结果便是一系列迈向部分承认的权宜步骤。1822 年 5 月，美国承认原西班牙辖下各国的消息传来后不久，贸易委员会便提出一项法案，获外交大臣卡斯尔雷勋爵支持，准许南美洲新政治体的船只进入英国港口。外交部常务次官约瑟夫•普兰塔解释，这项法令的意图是“尽可能少声张”，以免扰乱与西班牙的关系。[113]1822 年夏，卡斯尔雷概述了通过任命驻西属美洲的英国领事，以及谈判商业条约，来强化*事实上的*承认的步骤。[114]

112. 1817 年，西班牙政府请求盟国部长谴责葡萄牙入侵东岸地区时，欧洲反革命政治，以及欧洲对干预南美洲的矛盾态度，在巴黎表现得淋漓尽致。参见 Beatrice de Graaf, *Fighting Terror After Napoleon: How Europe Became Secure After 1815〔题名译释：拿破仑之后对抗恐怖：1815 年之后欧洲如何获得安全〕* (Cambridge: Cambridge University Press, 2020), 428–438.

113. Planta 致 Straford Canning，1822 年 5 月 11 日, 转引自 Sanchez, Mariano, *The Woodbine Parish Report on the Revolutions in South America (1822)〔题名译释：伍德拜恩•帕里什关于南美洲革命的报告（1822）〕*: The Foreign Office and Early British Intelligence on Latin America〔题名译释：英国外交部与早期有关拉丁美洲的情报〕(Liverpool: Liverpool University Press, 2022), 37 .

114. Webster, C. K.,“Castlereagh and the Spanish Colonies II. 1818–1822〔题名译释：卡斯尔雷与西班牙殖民地，第二部分，1818—1822〕,”The English Historical Review 30, 120 (1915): 631–45 DOI: 10.1093/ehr/XXX.CXX.631. 1823 年的一项协议宣布，西班牙控制下的英属美洲港口向英国贸易开放，停止攻击英国船只，并设立索赔委员会处理赔偿。De Graaf 表明，卡斯尔雷也在拒绝协调欧洲共同回应的呼吁 (*Fighting Terror After Napoleon〔题名译释：拿破仑之后对抗恐怖〕*, 434–435).

[p. 25] 还有其他迹象表明，英国政府准备低调支持一个区域国家体系。卡斯尔雷曾提出，欧洲列强应推动南美洲各地形成君主立宪制。这项提议没有结果：法国人不愿支持，西班牙官员不能容忍任何形式的独立，

of Spanish power and the return of a closed imperial system. Profiting from a surge in exports, merchant houses were determined to maintain access to South American ports.[110] British officials threatened naval intervention to resolve tensions over the capture, and the Spanish government relented. Foreign Minister George Canning downplayed the tensions with Spain over the affair, describing the resolution as “a local remedy to a local grievance.”[111]

110. British exports to Latin America increased from 2.3% of British exports in 1806 to 12.6% in 1826 (Rory M. Miller, *Britain and Latin American in the Nineteenth and Twentieth Centuries* [London: Longmans, 1993], 73). On the inflated expectations about the promise of South American markets after their opening, see Platt, *Latin American and British Trade*, 23–64.

111. McCarthy, *Privateering, Piracy and British Policy in Spanish America*, 101–17, 108.

[p. 24] The *Lord Collingwood* case strengthened the resolve of British officials to craft a policy of gradual recognition. The goal was to maintain Spain as an ally and to thread a course between mollifying Whig-supported commercial elites and placating counterrevolutionary powers.[112] The result was an ad hoc progression of steps toward partial recognition. Soon after news arrived in May 1822 of United States acts of recognition of Spanish states, the Board of Trade presented a bill, endorsed by the foreign secretary Lord Castlereagh, to admit vessels from new polities in South America to British ports. The Permanent Under-Secretary of State for Foreign Affairs, Joseph Planta, explained that the intent of the act was to “make as little fuss about it as we can” so as not to disturb relations with Spain.[113] In the summer of 1822, Castlereagh outlined steps to strengthening *de facto* recognition through the appointment of British consuls to Spanish America and the negotiation of commercial treaties.[114]

112. The European politics of counterrevolution and European ambivalence about South American intervention were on bright display in Paris in 1817, when the Spanish government asked Allied ministers to condemn the Portuguese invasion of the Banda Oriental. See Beatrice de Graaf, *Fighting Terror After Napoleon: How Europe Became Secure After 1815* (Cambridge: Cambridge University Press, 2020), 428–438.

113. Planta to Straford Canning, 11 May 1822, quoted in Sanchez, Mariano, *The Woodbine Parish Report on the Revolutions in South America (1822)* : The Foreign Office and Early British Intelligence on Latin America (Liverpool: Liverpool University Press, 2022), 37 .

114. Webster, C. K.,“Castlereagh and the Spanish Colonies II. 1818–1822,”The English Historical Review 30, 120 (1915): 631–45 DOI: 10.1093/ehr/XXX.CXX.631. An agreement in 1823 declared British American ports under Spanish control open to British trade, ended attacks on British vessels, and established a claims commission to address compensation. De Graaf shows that Castelreagh was also rejecting appeals for a coordinated European response (*Fighting Terror After Napoleon*, 434–435).

[p. 25] There were other signs, too, that the British government was prepared to quietly endorse a regional system of states. Castlereagh at one point proposed that European powers cultivate the formation of constitutional

而且无论如何，美洲事态的发展已迅速超越这些方案。但卡斯尔雷关于一个由君主立宪国家组成的大陆的梦想，表明即使那些重视反革命压力的英国官员，也在预见一个新大西洋体系的兴起。问题不是南美洲会不会建立国家，而是建立得多快、采取何种形式，以及如何使这些国家与英国利益相协调。

[p. 25] 向新国家施压、要求遏制私掠，是这一协调计划的一部分。正如西班牙外交官敦促美国政府禁止从美国港口出发的私掠，英国政府也试图向南美洲官员施压，要求他们节制对私掠的支持。与驻美国的西班牙外交官不同，英国人无法通过领事施加影响，因此，向新政府传递压力的工具，只能是英国海军。[115]海军部报告称，海军渠道取得了一些成效。在布宜诺斯艾利斯，政府采取措施，要求私掠者起航前登记缴纳更高额的保证金；新成立的智利政府也同意介入，保护那些在仍由西班牙控制的秘鲁港口从事贸易的英国船只。然而，英国政府没有要求更强硬的措施，而是选择在正式的不干涉政策内，嵌入有限干预的制度。[116]若把所有获新政府许可的劫掠者都称为海盗，就会质疑新实体的国家地位，包括它们发动战争的权利。这会削弱英国政府正在低调强化的那些主权主张。[117]新的大西洋体系，正在被建构为一种政治体间制度：它规制海上暴力，而非消灭海上暴力，并保留帝国使用武力与强制来调节秩序的权利。

115. 这一政策契合一种全球战略：授权船长决定采取未达战争程度的措施，并在没有英国官员正式或常驻代表的地方充当法律代理人。参见 Benton, Lauren and Clulow, Adam, “How Not to Possess an Island: Pitcairn and the Legal Circuits of British Empire in the Pacific World〔题名译释：如何不占有一座岛屿：皮特凯恩与太平洋世界中大英帝国的法律回路〕,” Annales 7,4 (2025): 605–46.

116. 关于同一时期太平洋地区经授权的有限干预制度，参见 Benton, *They Called It Peace〔题名译释：他们称之为和平〕*, 第 5 章.

117. 参见 McCarthy 在下列著作中的精彩分析：*Privateering, Piracy and British Policy〔题名译释：私掠、海盗行为与英国政策〕*, 75–80, 159.

monarchies across South America. The proposal went nowhere: the French would not endorse it, Spanish officials would not brook independence in any form, and events in the Americas were in any case quickly outpacing such schemes. But Castlereagh’s dream of a continent of constitutional monarchies shows that even British officials attuned to counterrevolutionary pressures were anticipating the rise of a new Atlantic system. The question was not whether states would be established in South America but how quickly and in what form—and how they could be made to align with British interests.

[p. 25] Pressuring new states to contain privateering was part of this project of alignment. Much as Spanish diplomats were urging the United States government to ban privateering from U.S. ports, the British government sought to pressure South American officials to temper their sponsorship of privateering. Unlike Spanish diplomats in the United States, the British could not exercise influence through consuls, so their vehicle for delivering pressure on the new governments had to be the British Navy.[115] The Admiralty reported some success through naval channels. In Buenos Aires, the government moved to require privateers to register bonds of higher value before sailing, and the new Chilean government agreed to intervene to protect British vessels trading in Peruvian ports still under Spanish control. Yet the British government refrained from demanding more vigorous measures, instead opting for a system of limited intervention nestled within a formal policy of non-intervention.[116] To label as pirates all raiders licensed by the new governments would have called into question the status of the new entities as states, including their right to make war. That effect would have diminished the very claims of sovereignty that the British government was quietly seeking to reinforce.[117] The new Atlantic system was being constructed as an interpolity regime that would regulate, not eliminate, maritime violence and preserve imperial rights to use force and coercion to calibrate order.

115. The policy matched a global strategy of empowering captains to decide on measures short of war and to act as legal agents in places where there was no official or permanent representation by British officials. See Benton, Lauren and Clulow, Adam, “How Not to Possess an Island: Pitcairn and the Legal Circuits of British Empire in the Pacific World,” Annales 7,4 (2025): 605–46.

116. On the system of authorized limited intervention in the Pacific in the same period, see Benton, *They Called It Peace*, chapter 5.

117. See McCarthy’s excellent analysis in *Privateering, Piracy and British Policy*, 75–80, 159.

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[p. 26] *“不可抗拒号”*的劫掠，以及由此产生的战利品与海盗争议，横跨大西洋政治转变的关键年份。1816年，其他美国海员开始替地位未定的南美洲政府实施劫掠，丹尼尔斯追随其后。仅仅七年后，当最高法院对涉及“不可抗拒号”捕获物的最后一宗案件作出判决时，帝国政策已经改变了政治的可能范围。帝国仍占据支配地位，微小政治体也继续存在。但一些实体，如阿蒂加斯的东岸地区，已屈服于帝国入侵；另一些加入了新兴国家，或通过谈判达成脆弱安排，在帝国势力范围内保留一定自治。尽管该地区确切的政治轮廓仍不稳定，新秩序却不断确认一个日益收窄的政治可能性清单。丹尼尔斯通过接受哥伦比亚海军任命，适应了新秩序；这一职位保住了他的利润，也使他能够在巴尔的摩安享退休生活。

[p. 26] 把海上暴力及其规制置于地区变化的中心，会改变有关这一时期国际法律秩序的叙述。历史学家已经表明，关于文明程度的话语，成为界定美洲新国家在国际法律共同体中成员资格的核心焦点。[118]这一解释在其所及范围内是正确的。但在围绕私掠及其背后政治秩序之合法性的冲突中，我们看到了国家形成与新区域秩序之间丰富得多的联系。私掠者、他们的支持者及挑战者，在围绕海上捕获是否合法展开冲突时，被迫回应国际秩序形态的根本问题。

118. Obregón, Liliana, “Between Civilisation and Barbarism: Creole Interventions in International law〔题名译释：文明与野蛮之间：克里奥尔人对国际法的介入〕,” Third World Quarterly 27, 5 (2006): 815–32 DOI: 10.1080/01436590600780136; Coates, Benjamin Allen, Legalist Empire: International Law and American Foreign Relations in the Early Twentieth Century〔题名译释：法律主义帝国：二十世纪初的国际法与美国对外关系〕(Oxford University Press, 2016) DOI: 10.1093/acprof:oso/9780190495954.001.0001. 关于国际法中美国半球权力与区域多边主义之间的紧张关系，参见 Scarfi, Juan Pablo, The Hidden History of International Law in the Americas: Empire and Legal Networks〔题名译释：美洲国际法的隐秘历史：帝国与法律网络〕(Oxford University Press, 2017) DOI: 10.1093/acprof:oso/9780190622343.001.0001.

[p. 26] 各政治体必须在变化中的秩序面前为自己定位，美国就是一例。它正试探性地作为地区强国崛起，却仍然弱小，受到更强大帝国的冲击。把门罗主义描述为美国帝国主义的框架，已成为常见做法；但这一学说的强硬版本，是数十年后才被明确提出的，用以为美国领土扩张及奴隶制扩展辩护。[119]在十九世纪最初几十年，美国领导人支持大西洋国家体系，部分是为了把它作为*抵御*帝国权力的堡垒。恢复这一愿景，并不是否认美国谋求地区霸权的野心；它使我们能够认识欧洲帝国的支配地位，辨识除革命运动之外塑造国际性大西洋的力量，并扩展参与者名单：这些参与者在主权与国际法的交汇处，从事着宪政构建。

[p. 26] The *Irresistible* raids and the disputes they produced about booty and piracy spanned the crucial years of Atlantic political transformation. Daniels followed other U.S. mariners who began to raid for South American governments of uncertain status in 1816. Just seven years later, as the Supreme Court was ruling in the last of the cases involving the *Irresistible* captures, imperial policies had shifted the political horizon. Empires still dominated, and micro-polities persisted. But some entities, like Artigas’s Banda Oriental, had succumbed to imperial invasion, and others had joined emergent nations or negotiated tenuous arrangements to retain a measure of autonomy within imperial spheres of influence. Even as the precise political contours of the region remained unstable, the new order was reaffirming a narrowing list of political possibilities. Daniels conformed to the new order by taking a commission in the Colombian navy, a position that secured his profits and allowed him a comfortable retirement in Baltimore.

[p. 26] Placing maritime violence and its regulation at the center of regional change alters narratives about international legal order in this period. Historians have shown that a discourse about degrees of civilization became a central focus of efforts to define the membership of new American states in the international legal community.[118] This account is correct as far as it goes. In conflicts over the legitimacy of privateering and the political order behind it, we glimpse a much more varied set of connections between state formation and the new regional order. Privateers, their sponsors, and their challengers were forced to address fundamental questions about the shape of the international order as they engaged in conflicts over the lawfulness of captures at sea.

118. Obregón, Liliana, “Between Civilisation and Barbarism: Creole Interventions in International law,” Third World Quarterly 27, 5 (2006): 815–32 DOI: 10.1080/01436590600780136; Coates, Benjamin Allen, Legalist Empire: International Law and American Foreign Relations in the Early Twentieth Century (Oxford University Press, 2016) DOI: 10.1093/acprof:oso/9780190495954.001.0001. On tensions between U.S. hemispheric power and regional multilateralism in international law, see Scarfi, Juan Pablo, The Hidden History of International Law in the Americas: Empire and Legal Networks (Oxford University Press, 2017) DOI: 10.1093/acprof:oso/9780190622343.001.0001.

[p. 26] It was mandatory for polities to position themselves in relation to the shifting order. The United States was a case in point. Emerging tentatively as a regional power, the country remained weak and buffeted by more powerful empires. It has become commonplace to describe the Monroe Doctrine as a framework for U.S. imperialism, but the muscular version of the doctrine was articulated decades later to justify U.S. territorial expansion and the extension of slavery.[119] In the early decades of the nineteenth century, U.S. leaders endorsed an Atlantic system of states in part as a bulwark *against* the power of empires. To recover this vision is not to deny U.S. ambitions of re-

119. Jay Sexton, *The Monroe Doctrine: Empire and Nation in Nineteenth-Century America*〔*题名译释：门罗主义：十九世纪美国的帝国与民族国家*〕(Hill & Wang, 2012). 特朗普政府把这段历史扁平化，以提出门罗主义的“特朗普推论”，将其解释为对美国半球权力毫无限定的宣示 (“National Security Strategy of the United States of America〔题名译释：美利坚合众国国家安全战略〕,” 2025 年 11 月，访问于 2026 年 2 月 11 日，网址：https://www.whitehouse.gov/wp-content/uploads/2025/12/2025-National-Security-Strategy.pdf).

[p. 27] 围绕海上暴力的冲突，凸显了这一时代意识形态上的兼收并蓄与政治上的即兴应变。正如阿蒂加斯的宪政主义，自由修辞可以与分层主权及邦联的愿景相容；丹尼尔斯等人的革命言论，也与其机会主义相契合。我们还看到，私掠造成了海量的意外后果。劫掠者强化了某些新国家寻求承认的主张，却也使另一些国家暴露于破坏稳定的外部压力之下。反帝国行动者、奴隶贩子和反革命者，都同样可以运用私掠实践。事实上，私掠委任状一旦进入流通，其流转路径便不可预测。即使东岸地区已经落入葡萄牙—巴西军队之手，阿蒂加斯也已流亡，他颁发的委任状仍出现在大西洋捕获法庭上，由仍在经营的奴隶贩子持有。[120]

120. 除 *Antelope* 号（23 U.S. 66 1825）外，在阿蒂加斯流亡后才获裁决的捕获程序，还涉及 *Arrogante Barcelones* 号（20 U.S. 496 1822）和 *Fanny* 号（22 U.S. 658 1824）。持阿蒂加斯委任状、载有被奴役者而遭截获的船只，既包括 *Mouche* 号——一艘在圣托马斯与托尔托拉之间被英国船捕获、载有数名被奴役非洲人的小船（TNA, CO 318/820）——也包括 *General Artigas* 号，它于 1817 年护送两艘捕获船抵达加尔维斯顿，其中一艘载有 287 名奴隶 (William C. Davis, *The Pirates Laffite: The Treacherous World of the Corsairs of the Gulf*〔*题名译释：拉菲特海盗兄弟：墨西哥湾私掠者的险恶世界*〕[New York: Houghton Mifflin, 2006] 320–21, 326).

[p. 27] 更广泛地说，*“不可抗拒号”*的故事提醒我们，过于照字面理解“海盗是所有人的敌人”的修辞，存在危险。在十九世纪早期，这套话语获得政治力量，却失去法律精确性。正如阿利克所言，海盗法的“概念优雅”，丝毫没有阻止它在“适用中盘根错节”。[121] 但即便“海盗”一词的概念清晰性，也被大西洋体系的不确定性削弱。国家性质的不确定，以及战争权利的不平等分配，使海盗法成为一个诠释场域，而非标明谁被排除于国际秩序之外的坚实基础。

121. Arlyck, *The Nation at War*〔*题名译释：战争中的国家*〕, 217.

[p. 27] 这些发现之所以重要，是因为海盗经常——而且往往随意地——被当作其他所谓普遍敌人的模型，最

gional hegemony. It allows us to recognize the dominance of European empires, to identify forces other than revolutionary movements shaping the international Atlantic, and to widen the list of participants engaged in constitutional projects at the intersection of sovereignty and international law.

119. Jay Sexton, *The Monroe Doctrine: Empire and Nation in Nineteenth-Century America* (Hill & Wang, 2012). The Trump administration has flattened this history to assert a “Trump Corollary” to the Monroe Doctrine, interpreting it as an unqualified statement about U.S. hemispheric power (“National Security Strategy of the United States of America,” November 2025, accessed on 11 February 2026, at: https://www.whitehouse.gov/wp-content/uploads/2025/12/2025-National-Security-Strategy.pdf).

[p. 27] Conflicts over maritime violence highlight the ideological eclecticism and political improvisation of the age. As with Artigas’s constitutionalism, the rhetoric of liberty was consistent with visions of layered sovereignty and confederation, and revolutionary talk among men like Daniels meshed with their opportunism. We have seen, too, that privateering produced an ocean of unintended consequences. Raiders bolstered bids for recognition by some new states while exposing others to destabilizing external pressures. Privateering practices were equally available to anti-imperial agents, slave traders, and counterrevolutionaries. Indeed, once privateering commissions were in circulation, their itineraries were unpredictable. Commissions issued by Artigas showed up in Atlantic prize courts in the possession of active slave traders even after the Banda Oriental had fallen to Luso-Brazilian forces and Artigas was in exile.[120]

120. Besides the *Antelope* (23 U.S. 66 1825), examples of ships in prize proceedings decided after Artigas was in exile include the *Arrogante Barcelones* (20 U.S. 496 1822) and the *Fanny* (22 U.S. 658 1824). Ships with Artigas commissions intercepted with enslaved people range from the *Mouche*, a small vessel captured by a British ship between St. Thomas and Tortola with a few enslaved Africans on board (TNA, CO 318/820) to the *General Artigas*, which arrived at Galveston in 1817 escorting two prizes, one a ship carrying 287 slaves (William C. Davis, *The Pirates Laffite: The Treacherous World of the Corsairs of the Gulf* [New York: Houghton Mifflin, 2006] 320–21, 326).

[p. 27] More broadly, the *Irresistible* story reminds us of the dangers of taking too literally the rhetoric about pirates as enemies of all. In the early nineteenth century, the discourse gained political force while losing legal precision. As Arlyck observes, nothing about the “conceptual elegance” of piracy law prevented it from being “knotty in application.”[121] But even the conceptual clarity of the term “piracy” was dimmed by the indeterminacies of the Atlantic system. Uncertainties about the character of states and the unequal distribution of the right to make war made the law of piracy an interpretive field, not a firm foundation for marking exclusion from the international order.

121. Arlyck, *The Nation at War*, 217.

[p. 27] These findings matter as pirates are frequently—and often casually—cited as models for other supposedly uni-

近的例子是恐怖分子，包括想象中的“毒品恐怖分子”和“国内恐怖分子”。[122] 普遍敌对的语言暗示，任何国家——甚至也许任何私人组织——都可以主张管辖权，攻击并杀死被贴上“所有人的敌人”标签的人。然而，正如海盗与私掠的情况，认定某个群体处于国际法律秩序之外，往往几乎仅仅依据夸张的修辞。一些被称为秩序外弃民的群体，接受国家资助运作；另一些则获准主权实体认可，或由它们经营；真正符合完全独立或不受约束行动者这一类别的群体，少之又少。正如打击海上劫掠的行动，“反恐战争”的自然法基础，远不如国家政策的结构与同步性重要。[123]在寻找对国际秩序造成重大破坏的力量时，我们应把注意力从犯罪的无赖，转向犯罪的政治体。[124]

122. 关于这一话语的含混游移，参见 Li, Darryl, The Universal Enemy: Jihad, Empire, and the Challenge of Solidarity〔题名译释：普遍的敌人：圣战、帝国与团结的挑战〕(Redwood City: Stanford University Press, 2019).

123. Scheppele, Kim Lane, “The Deep Dilemma of Evidence in the Global Anti-Terror Campaign〔题名译释：全球反恐行动中证据的深层困境〕,” in Jackson, Vicki and Fabbrini, Federico, eds., Constitutionalism across Borders in the Struggle Against Terrorism〔题名译释：反恐斗争中的跨境宪政主义〕(Northampton: Edward Elgar, 2016).

124. Douglas, Lawrence, The Criminal State: War, Atrocity, and the Dream of International Justice〔题名译释：犯罪国家：战争、暴行与国际正义之梦〕(Princeton: Princeton University Press, 2025); Salaymeh, Lena, “Comparing Islamic and International Laws of War: Orthodoxy, ‘Heresy,’ and Secularization in the Category of Civilians〔题名译释：比较伊斯兰战争法与国际战争法：平民类别中的正统、“异端”与世俗化〕,” The American Journal of Comparative Law 69, 1 (2021): 136–67 DOI: 10.1093/ajcl/avab001.

[p. 28] 带着这些主题与*“不可抗拒号”*的故事，我们可以回到文章开头的海盗辩论。对海盗的浪漫化描绘，值得我们怀疑，不仅因为它们违背了有关海上劫掠者的社会联系与志向的大量证据，还因为它们鼓励一种危险地简单化且不准确的海上暴力与国际秩序形成观。丹尼尔斯这样的海上劫掠者，与他们航行其间的国家之海一道，被迫成为高度政治化的行动者。他们综合运用各种熟知的策略，从改动船舶文件、变更国籍，到选择有利法庭，同时发明新的办法，在由众多不断变动的部分组成的政治体系中周旋。海上劫掠既把国家牢牢置于帝国权力交错的风向之中，也促成了一种新的政治体间秩序的诞生。

versal enemies, most recently terrorists (including imagined “narco-terrorists” and “domestic terrorists”).[122] The language of universal enmity implies that any state (and perhaps any private organization) can claim jurisdiction to attack and kill people labeled as enemies of all. Yet, as with piracy and privateering, the conclusion that a group sits outside the international legal order is often based on little more than rhetorical flourish. Some groups labeled as outcasts operate with funding from states and some are endorsed or run by quasi-sovereign entities, while very few groups fit the category of truly independent or roguish actors. As with campaigns against sea raiding, the natural law foundations of the “war on terror” matter much less than the structure and synchrony of state policies.[123] In our search for massive disruptions to the international order, we would do well to shift our attention from criminal rogues to criminal polities.[124]

122. On the slipperiness of the discourse, see Li, Darryl, The Universal Enemy: Jihad, Empire, and the Challenge of Solidarity (Redwood City: Stanford University Press, 2019).

123. Scheppele, Kim Lane, “The Deep Dilemma of Evidence in the Global Anti-Terror Campaign,” in Jackson, Vicki and Fabbrini, Federico, eds., Constitutionalism across Borders in the Struggle Against Terrorism (Northampton: Edward Elgar, 2016).

124. Douglas, Lawrence, The Criminal State: War, Atrocity, and the Dream of International Justice (Princeton: Princeton University Press, 2025); Salaymeh, Lena, “Comparing Islamic and International Laws of War: Orthodoxy, ‘Heresy,’ and Secularization in the Category of Civilians,” The American Journal of Comparative Law 69, 1 (2021): 136–67 DOI: 10.1093/ajcl/avab001.

[p. 28] With these themes and the story of the *Irresistible* in mind, we can return to the debates about piracy with which we began. Romantic representations of pirates deserve our skepticism not only because they fly in the face of copious evidence about sea raiders’ connections and aspirations. They also encourage a dangerously simplistic, inaccurate view of maritime violence and international ordering. Sea raiders like Daniels were, along with the sea of states in which they navigated, forced to become hyper-political actors. They deployed a mix of well-known strategies, from altering ships’ documents to changing citizenship to forum shopping, while inventing new ways to maneuver through political systems of many moving parts. Sea raiding both pinned states firmly in the crosswinds of imperial power and helped to summon into existence a new interpolity order.

编者说明

piracy 译为海盗行为，具体法律语境中译为海盗罪；privateering 译为私掠；prize 依语境译为捕获物或合法捕获物，prize court 译为捕获法庭；law of nations 译为万国法。是否承认政治体、是否承认其战争及捕获合法，是原文有意区分的问题。国际性大西洋指本文所分析的大西洋国际政治空间。

Banda Oriental 译为东岸地区，Provincia Oriental 译为东方省，República Oriental 译为东方共和国。文中的东方共和国指阿蒂加斯领导的邦联，不能直接等同于后来的乌拉圭共和国。los pueblos 兼有城镇及其人民的意味，按上下文保留这种政治含义。

英文以出版方 HTML 为底本，斜体照录。页码指段落起始的原刊页码，跨页段落不拆分。124 条原注在 PDF 中置于引用段落之后，网页提供中英注释和往返链接；原注之间的互引使用原编号。HTML 中与页码或年份粘连的 DOI 前补分隔符，不改 DOI 本身。

书目元数据保留原文，并附题名译释；题名译释不表示存在正式中译本。档案说明及论证性注释完整翻译，档案缩写、案名、检索号及可检索人名保留。原注 1 中的 HTML 姓名次序在中文致谢中按姓名顺序表达。

若干原文疑点照录而未擅改：注 3 书籍出版年为 201；注 75 及 121 写 The Nation at War，而其他注多为 The Nation at Sea；注 94 写 The Antebellum Constitution，而其他注为 The Interbellum Constitution。英文正文 was was 的重复保留，中文按句意译出。

正文讨论 1819 年法规，原注 84 却列 1790 年法令日期；原注 85 指向下文注 96，而注 96 为致谢，相关法律讨论见注 98。本版保留原注编号及引文信息。正文另有距 1819 年十五年后之说，其所引 Cherokee Nation v. Georgia 案在注 69 标 1831 年，亦未自行统一。

原注 114 写 British American ports under Spanish control，中文按其字面译为‘西班牙控制下的英属美洲港口’，未替作者改为西属美洲港口。原文中的其他拼写、缩写及短引书目不一致亦保留；本版不将这些原始引文表述为已获独立校正。